



U.S. Embassy Amman



European
Investment Bank



The Hashemite Kingdom of Jordan
Ministry of Water and Irrigation
Water Authority of Jordan
Request for Qualifications (RFQ)
Invitation to Pre-Qualify Contractors
for the Design Build & Operate (DBO)
of the
Wadi Zarqa Wastewater Treatment Plant Phase I

Employer:

Water Authority of Jordan (WAJ)
Tender No. 33/2025

FUNDING AGENCIES:

The European Investment Bank (EIB)
&
United States Department of State (U.S. DoS)

23 October 2025

SPECIFIC PROCUREMENT NOTICE

Invitation for Prequalification

Design Build and Operate (DBO) of the Wadi Zarqa Wastewater Treatment Plant Phase 1

Tender No. 33/2025

The Water Authority of Jordan (WAJ), as the Employer for the Project, has applied for funds from European Investment Bank ("**EIB**") and United States Department of State ("**U.S. DoS**") towards the cost of the Wadi Zarqa Wastewater Treatment Plant Phase 1 DBO Project, and it intends to apply the funds to payments for the design, construction and first two years of operation under the contract for the "**Design Build and Operate (DBO) of the Wadi Zarqa Wastewater Treatment Plant Phase 1**"- **Tender No. 33/2025**. The DBO project will include 20 years of operation with the remaining eighteen years of operation funded by the Government of Jordan.

The Employer's consultant is preparing the Invitation for Bids and DBO Contract based on the FIDIC General Conditions, Gold Book First Edition, 2008 with specific clauses incorporated to cover specific EIB and U.S. DoS requirements. The Consultant is also in the process of preparing a preliminary design of the new facilities which will be shared with the prequalified bidders for information purposes.

The Water Authority of Jordan (WAJ), under the Ministry of Water and Irrigation (MWI), is soliciting submissions of prequalification data through this Request for Qualifications (RFQ) from experienced contractors for the Design, Build, and Operate (DBO) of the Wadi Zarqa Wastewater Treatment Plant Phase 1. The Employer intends to prequalify firms for this project, with invitations for bid expected in the second quarter of 2026. The contract will include a design-build period of approximately 36 months (2027–2030) and an operation service period of 20 years (2030–2049).

The intent of this prequalification is three folds: Firstly, it ensures that bids are received from eligible bidders in accordance with the eligibility criteria stipulated in the Prequalification Document and **Section V – Eligibility Criteria**, Firms originating from all countries of the world are eligible to tender for the project. Second, it ensures that bids are received only from bidders who, in the opinion of Employer, have the necessary experience, technical and financial capabilities to successfully complete the proposed Works and Services as per **Section III – Evaluation and Prequalification Criteria**. Third, it saves the cost of bid preparation for those bidders who would fail to qualify for the work at the time of bid evaluation. Only prequalified contractors will receive an Invitation for Bids (IFB) and will be allowed to purchase Tender Documents.

Jordanian Contractors intending to participate either as a Single Entity or as a partner in a Joint Venture/Consortium must satisfy the classification as First Grade in Wastewater Treatment Plants; First Grade in Construction/ Buildings; First Grade in Water/Wastewater; and First Grade Electromechanical Works and Services , all combined, as per the Ministry of Public Works and Housing (MOPWH) /General Tendering Department (GTD) classification system.

Wadi Zarqa WWTP, based on current flow projections, is planned to be implemented in two phases: Phase 1 aims to achieve a wastewater treatment of 150,000 m³/day by 2030. Phase 2 is planned to add additional capacity of 200,000 m³/day to Phase 1, achieving a total project capacity of 350,000 m³/day by 2034-2035. The project scope, and this prequalification is for the Design, Build and Operate of the Phase 1 of Wadi Zarqa Wastewater Treatment Plant (WWTP) and

associated facilities and the planning to facilitate the Phase 2 expansion in the future as described in the Prequalification Document.

The project scope includes but is not limited to the design, permitting, supply, delivery, construction, commissioning, operation, maintenance and transfer of the Wadi Zarqa WWTP, with a Phase 1 treatment capacity of 150,000 m³/d, an approximately 1.4 MW hydropower plant, the conveyance system from the West Zarqa Pump Station (WZPS) to Wadi Zarqa WWTP including 12 km of pipeline with a diameter to be confirmed (estimated at up to 1,600 mm), as well as the expansion of the pre-treatment facility at WZPS.

Given the Phase 1 construction and startup is expected to be followed shortly thereafter by the Phase 2 expansion, it is imperative that the Phase 1 DBO contractor properly plan for said expansion so that it can be readily implemented without interruptions in the Phase 1 plant operations. As such, the Phase 1 project scope also includes the planning and implementation of key interface work required to facilitate the Phase 2 expansion later. This includes preparing both a Phase 1 only civil design but also the design showing the Phase 2 expansion (site grading, proposed facilities, yard utilities and key connection points) along with a hydraulic profile for both the Phase 1-only as well as the Phase 1 plus Phase 2 facility. The proposed Wadi Zarqa WWTP project main components may include, but are not limited to the following items (*For Information Only, some project components listed are subject to change following prequalification*):

1- New Wadi Zarqa WWTP [Liquid Line]

A) Hydropower plant, B) primary clarifiers, C) Secondary treatment with biological nutrient removal and secondary clarifiers, D) Tertiary treatment filtration as Optional Bid Item and E) Chlorine disinfection.

2- New Wadi Zarqa WWTP [Sludge Line]

A) Gravity thickening for primary sludge and mechanical thickening for waste activated sludge (WAS), B) Pre-dewatering and Thermal hydrolysis process to produce Class A biosolids, C) Mesophilic anaerobic digestion, D) Dewatering of digested sludge, E) a solar sludge drying, F) Combined Heat and Power (CHP) system.

3- Other New Wadi Zarqa WWTP Plant Works

A) Yard piping and utilities, B) Site works, including riverbank stabilization and flood protection, C) Power supply and distribution, non-process buildings (administration, visitor center, maintenance), D) O&M roads and access, electrical, instrumentation, and SCADA, E) Phase 1 site configuration and grading to enable cost-effective Phase 2 expansion with minimal operational disruption

4- New conveyance system

New conveyance system including a conveyor pipeline from WZPS to the Wadi Zarqa WWTP.

5- Expansion of West Zarqa PS

Expansion of the West Zarqa PS Pretreatment facility including additional screening, grit and grease removal, yard piping, and reconfiguration of Emergency Storage Pond.

6- Operation and Maintenance Phase

The contract will also include 20 years Operation Service Period (O&M) component, including WWTP, Conveyance pipelines, & Hydropower Plant.

Interested eligible Applicants can download the prequalification document from WAJ website <https://www.mwi.gov.jo/AR/Modules/tenders>

Prequalification and the Tendering procedure for the project will be conducted through:

1) WAJ procurement procedures.

2) in line with the European Investment Bank's Guide to Procurement (EIB GtP). For reference, the EIB GtP is publicly available at the following link:

<https://www.eib.org/en/publications/20240132-guide-to-procurement-for-projects-financed-by-the-eib>

3) The Rules for Procurement of Commodities and Services Financed by U.S. DoS can be found at the following link: <https://www.ecfr.gov/current/title-22/chapter-II/part-228?toc=1> . With respect to the source of nationality eligibility, Section V of the Prequalification Document shall prevail and apply.

In addition to the Procurement Guidelines (1-3) above, the provisions of the Jordan Government Procurement Bylaw No. 8 of 2022 shall also apply.

EIB and U.S. DoS have certain approval rights, including but not limited to, approval of the list of prequalified contractors, the selected contractor, and the contract award. The exercise of EIB and U.S. DoS approval rights is not, however, to be construed in any way as making EIB or U.S. DoS parties to the Contract.

Applicants must submit a hard copy and soft copy (flash drive) of their application. A total of two sets shall be submitted: 1 original (1 hard and 1 soft copy) and 1 copy (1 hard and 1 soft copy). Submission must be made in accordance with the rules and procedures set in this Prequalification Document. Applications failing to follow the submission rules and procedures in this Prequalification Document may be rejected.

The applicant's identification must be clearly indicated on the outside of the application, which shall be delivered to the specified address before the stated deadline.

Prequalification applications must be submitted no later than **29 December 2025 at 12:00 PM (Jordan Local Time)**, and the opening of the applications will take place on the same day.

Hard Copy Submission:

The hard copy should be submitted in sealed envelopes, in accordance with Instructions to Applicants (ITA) no. 15 and ITA no. 16.1 delivered to the address below, and be clearly marked "Application to Prequalify for the Design Build and Operate (DBO) of Wadi Zarqa Wastewater Treatment Plant Phase 1 – Tender No. 33/2025"

**Water Authority of Jordan
Shmeisani - Behind the Marriott Hotel
Tenders and Procurement Directorate 6th floor
P.O. Box 5012, Amman 11181
Hashemite Kingdom of Jordan
Attention: Eng. Rua Alsoub**

Soft Copy Submission:

A soft copy on a flash drive which contains one searchable PDF version shall be submitted.

In case of differences between the hard copy and the PDF soft copy, the hard copy shall take precedence in the qualification process.

Clarifications

The Applicant shall submit questions or requests for clarification no later than **08 December 2025, at 12:00 PM (Jordan Time)**.

Anticipated Procurement Process Timeline:

The anticipated procurement process and timetable is shown below in Table 1, All the activities and dates shown in the table are subject to change and provided only for information purposes.

Table 1: Procurement Process and Timetable (Items 4-8 are *For Information only and Subject to Change*)

Item	Activity¹	Date
1	RFQ available	October 23, 2025
2	Deadline for Applicants to submit RFQ questions to Employer	December 08, 2025
3	Last day for Applicants to submit Application	December 29, 2025
4	Employer Selects Qualified List	February, 2026
5	Invitation for Bids (IFB)	June, 2026
6	Bid Preparation Period	5 months from Item 5
7	Final Evaluation Report	4 months from Item 6
8	Expected Notice to Proceed	Mid 2027

The awarded Bidder shall bear the costs of the advertisement in the gazette for one time.

Secretary General of WAJ
Eng. Sufyan T. Bataineh

¹ All activities and dates shown are for Information and subject to change

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PART I – Prequalification Procedures

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Section I – Instructions to Applicants

A. General

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| 1 Scope of Application | <p>1.1 In connection with the Invitation for Prequalification indicated in Section II, Prequalification Data Sheet (PDS), the Employer, as defined in the PDS, issues these Prequalification Documents ("Prequalification Documents") to prospective applicants ("Applicants") interested in submitting applications ("Applications") for prequalification to bid for the Works and Services described in Section VII - Scope of Works and Services. In case the Works and Services are to be bid as individual contracts (i.e. the slice and package procedure), these are listed in the PDS. The International Procurement Competition ("IPC") number corresponding to this prequalification is also provided in the PDS. A Glossary of defined terms is provided in the PDS.</p> <p>1.2 The procurement process will be conducted in accordance with:</p> <p>A- The WAJ procurement procedure and in line with the EIB Guide to Procurement for projects financed by EIB:

 https://www.eib.org/en/publications/20240132-guide-to-procurement-for-projects-financed-by-the-eib</p> <p>B- The Rules for Procurement of Commodities and Services Financed by U.S. DoS can be found at the following link:
 https://www.ecfr.gov/current/title-22/chapter-II/part-228?toc=1
 ;With respect to the source of nationality eligibility, Section V of the Prequalification Document shall prevail and apply.</p> <p>C- The provisions of the Jordan Government Procurement Bylaw No. 8 of 2022 shall also apply.</p> |
| 2 Source of Funds | <p>2.1 The Employer indicated in the PDS has applied for financing (hereinafter called "funds") from the European Investment Bank (hereinafter called EIB) and from the United States Department of State (hereinafter called U.S. DoS) towards the project named in the PDS. The Employer intends to apply the funds to eligible payments under the contract(s) resulting from the bidding for which this prequalification is conducted.</p> |
| 3 Corrupt and Fraudulent Practices | <p>3.1 EIB and U.S. DoS require compliance with policies in regard to corrupt and fraudulent practices as set forth in Section VI.</p> <p>3.2 In further pursuance of Section VI, Applicants shall permit and shall cause its subcontractors and sub-consultants, to permit EIB and U.S. DoS to inspect all accounts, records and other documents relating to the submission of the Application, bid submission (in case prequalified), and contract performance (in the case of award), and to have them audited by auditors appointed by EIB and U.S. DoS. The auditor may be appointed jointly by EIB and U.S. DoS, or separately by each of them to work independently under their respective mandates</p> |
| 4 Eligible Applicants | <p>4.1 An Applicant may be a firm that is a private entity, a state-owned entity-subject to ITA 4.3 or a combination of such entities in the form of a joint venture ("JV") under an existing agreement or with the intent to enter into such an agreement supported by a letter of intent. In the case of a JV-Consortium, all members shall be jointly</p> |

and severally liable for the execution of the Contract in accordance with the Contract terms. The JV shall nominate an authorized representative who shall have the authority to conduct all business for and on behalf of any and all the members of the JV during the prequalification process, bidding (in the event the JV submits a bid) and during contract execution (in the event the JV is awarded the Contract). Unless specified in the **PDS**, there is no limit to the number of members in a JV.

- 4.2 A firm may submit a Prequalification Application either individually or participate as a member of a JV, but not both. A firm may not participate in more than one JV, nor may a firm participate as a Specialized Subcontractor on more than one Application. Only one firm within a corporate group (i.e. a parent company together with its subsidiaries) may prequalify, whether individually, as a member of a JV or as a Specialized Subcontractor.
- 4.3 EIB and U.S. DoS's eligibility criteria for prequalification are described in Section V – Eligibility Criteria. Rules regarding the selection and approval of subcontractors will be provided to pre-qualified contractors with the Invitation for Bids (IFB).
- 4.4 Pursuant to its conflict-of-interest policy as stipulated in section 1.5 of the EIB GtP¹, the Applicant is excluded from participating in an EIB-financed procurement procedure or contract in the event the Applicant is affected by a conflict of interest that cannot be remedied by other less intrusive measures. The assessment of any potential conflict of interest will be carried out per the EIB GtP. Conflict of interest occurs when the impartial and objective exercise of the functions of the Employer, or the respect of the principles of competition, non-discrimination or equality of treatment with regard to the procurement procedure or contract, is compromised for reasons involving family, emotional life, political or national affinity, economic interest or any other shared interest. The concept of conflict of interest covers any situation where staff members (or consultants acting on behalf) of the Employer who are involved in the conduct of the procurement procedure or may influence the outcome of that procedure have, directly or indirectly, a financial, economic or other personal interest which might be perceived to compromise their impartiality and independence in the context of the procurement procedure or contract execution.
- 4.5 An Applicant shall provide such evidence of eligibility satisfactory to the Employer, as shall be reasonably requested.
- 4.6 For avoidance of doubt, all requirements set forth in ITA 4, as well as other requirements in this Prequalification Document, apply to all firms included in the Application.
- 4.7 Failure to submit the EIB Covenant of Integrity and Environmental and Social Covenant **Section VI**, shall result in the Applicant being declared ineligible. Applicants need to declare any sanction in the Covenant of Integrity. The Applicant shall self-declare in the Covenant all sanctions and/or exclusions (including any similar decisions having the effect of imposing conditions on the tenderer or its subsidiaries or to exclude the said tenderer or its subsidiaries, such as temporary suspension, conditional non-exclusion, etc.)

¹ <https://www.eib.org/en/publications/20240132-guide-to-procurement-for-projects-financed-by-the-eib>

imposed by the European institutions or any multilateral development banks (including the World Bank Group, the African Development Bank, the Asian Development Bank, European Bank for Reconstruction and Development, European Investment Bank or Inter-American Development Bank), regardless of the date of issue and the expiration or not of such decisions and of the current status of any sanction and/or exclusion. In this regard, any omission or misrepresentation, made knowingly or recklessly, may be considered as fraud under the EIB Anti-Fraud Policy. Therefore, the Employer reserves the right to reject any offer presenting an inaccurate or incomplete Covenant of Integrity, and may cause the rejection of the offer for prohibited conduct.

- 4.8 Applicants excluded by the EIB under its Exclusion Policy for prohibited conduct, as defined in the EIB Anti-Fraud Policy, are not eligible to participate in this tender.

For Reference:

EIB Exclusion Policy

<https://www.eib.org/en/publications/exclusion-policy>

EIB Anti-Fraud Policy

<https://www.eib.org/en/publications/anti-fraud-policy>

- 4.9 Pursuant to its Sanctions Policy, the EIB shall not provide or otherwise make funds available, directly or indirectly, to or for the benefit of an individual or entity that is subject to financial sanctions imposed by the EU, either autonomously or pursuant to the financial sanctions decided by the United Nations Security Council on the basis of article 41 of the UN Charter.

5 Eligible Services

- 5.1 The Services to be supplied under the Contract and funded by EIB and U.S. DoS may have their origin in any country subject to the terms specified in Section V - Eligibility Criteria, and all expenditures under the Contract will not contravene such restrictions.

- 5.2 It is the EIB policy to require that the Employer, as well as Applicants, contractors, suppliers and consultants under the EIB-financed contracts, observe the highest standard of ethics during the procurement and execution of such contracts. EIB reserves the right to take all appropriate action in order to enforce this policy.

Moreover, the EIB is committed to ensuring that its funds are used for the purposes intended and its operations are free from Prohibited Conduct (including but not limited to, fraud, corruption, collusion, coercion, obstruction, money laundering and terrorist financing²).

In pursuance of this policy as set out in EIB's Anti-Fraud Policy, if it is established to the required standards³ that a project-related party⁴ has engaged in Prohibited Conduct in the course of a procurement process or implementation of a contract (to be) financed, EIB:

² See the EIB's Anti-Fraud Policy for definitions <https://www.eib.org/en/publications/anti-fraud-policy>

³ In accordance with the EIB's Investigation Procedures.

⁴ See the EIB's Anti-Fraud Policy.

- a) May seek appropriate remediation of the Prohibited Conduct to its satisfaction;
- b) May declare ineligible such project-related party to be awarded or participate in the contract; and/or
- c) May withhold the EIB's no objection to contract award and may apply appropriate contractual remedies, which may include suspension and cancellation, unless the Prohibited Conduct has been dealt with to the satisfaction of EIB.

Furthermore, within the framework of its Exclusion Policy, EIB may declare such project related party ineligible to be awarded a contract under any EIB project or to enter into any relationship with the EIB.

- 5.3 For the avoidance of doubt, while this provision expressly references the EIB Anti-Fraud Policy, U.S. DoS shall be entitled to the same rights and remedies as the EIB in respect of Prohibited Conduct, including the right to inspection, audit, and application of appropriate contractual remedies, all in line with the EIB Anti-Fraud Policy.

6 Sections of Prequalification Documents

B. Contents of the Prequalification Documents

- 6.1 These Prequalification Documents consist of parts 1 and 2 which comprise all the sections indicated below, and which should be read in conjunction with any Addendum issued in accordance with ITA 8.

PART I: Prequalification Procedures

- Section I - Instructions to Applicants (ITA)
- Section II – Prequalification Data Sheet (PDS)
- Section III – Evaluation and Prequalification Criteria
- Section IV – Application Forms
- Section V – Eligibility Criteria
- Section VI – Corrupt and Fraudulent practices –Environmental and Social Responsibility

PART II: Works and Services Requirements

- Section VII – Scope of Works and Services

- 6.2 Unless obtained directly from the Employer, the Employer accepts no responsibility for the completeness of the Prequalification Documents, responses to requests for clarification, or Addenda in accordance with ITA 8. In case of any discrepancies, documents issued directly by the Employer shall prevail.
- 6.3 The Applicant is expected to examine all instructions, forms, and terms in the Prequalification Documents and to furnish with its Application all information or documentation as is required by the Prequalification Documents.

7 Clarification of Prequalification Documents

- 7.1 A prospective Applicant requiring any clarification of the Prequalification Documents shall contact the Employer in writing at the Employer's address indicated in the **PDS**. The Employer will respond in writing to any request for clarification provided that such request is received no later than fourteen (14) days prior to the deadline for submission of the applications. The Employer shall forward a copy of its response to all prospective Applicants who have obtained the Prequalification Documents directly from the Employer, including a description of the inquiry but without identifying its source. If so indicated in the **PDS**, the Employer shall also promptly publish its response at the web page identified in the

PDS. Should the Employer deem it necessary to amend the Prequalification Documents as a result of a clarification, it shall do so following the procedure under ITA 8 and in accordance with the provisions of ITA 17.2.

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| 8 Amendment of Prequalification Documents | <p>8.1 At any time prior to the deadline for submission of Applications, the Employer may amend the Prequalification Documents by issuing an Addendum.</p> <p>8.2 Any Addendum issued shall be part of the Prequalification Documents and shall be communicated in writing to all prospective Applicants who have obtained the Prequalification Documents from the Employer. The Employer shall promptly publish the Addendum at the Employer's web page identified in the PDS.</p> <p>8.3 To give prospective Applicants reasonable time to take an Addendum into account in preparing their Applications, the Employer may, at its discretion, extend the deadline for the submission of Applications in accordance with ITA 17.2.</p> |
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C. Preparation of Applications

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| 9 Cost of Applications | <p>9.1 The Applicant shall bear all costs associated with the preparation and submission of its Application. The Employer will in no case be responsible or liable for those costs including the provision of any Supplemental Information that may be requested, regardless of the conduct or outcome of the prequalification process.</p> |
| 10 Language of Application | <p>10.1 The Application as well as all correspondence and documents relating to the prequalification exchanged by the Applicant and the Employer, shall be written in the language specified in the PDS. Supporting documents and printed literature that are part of the Application may be in another language, provided they are accompanied by an accurate translation of the relevant passages in the language specified in the PDS, in which case, for purposes of interpretation of the Application, the translation shall govern.</p> |
| 11 Documents Comprising the Application | <p>11.1 The Application shall comprise the following:</p> <ul style="list-style-type: none"> a) Application Submission Form, in accordance with ITA 12.1 and ITA 13.1 and the completed Application Forms of Section IV - Application Forms; b) Documentary evidence establishing the Applicant's eligibility, in accordance with ITA 13.1; c) Documentary evidence establishing the Applicant's qualifications, in accordance with ITA 14; and d) A power of attorney authorizing the representative of the Applicant, designated in accordance with ITA 4.1, to submit the Application for the Applicant. If the Applicant is a JV, the power of attorney shall be provided by the lead member nominated in the JV Agreement or in the Declarations of Association, submitted in accordance with ITA 4.1. e) The EIB Covenant of Integrity and the EIB Environmental and Social Covenant duly completed and signed as per Section VI. f) a duly certified consortium agreement (in the case of a JV-Consortium) or a shareholder agreement (in the case of a JV-Legal Entity); or a Letter of Intent signed by all members of the JV-Consortium or all owners of the JV-Legal Entity, confirming their intention to enter into such an agreement should the Applicant be awarded the Contract. A Statement that all |

- members shall be jointly and severally liable for the obligations of the JV-Consortium.
- g) The JV agreement or letter of intent shall set out the intended structure of the JV-Consortium or JV-Legal Entity, the respective roles and responsibilities for each partner.
 - h) Legally binding undertaking from the parent or affiliated company for Parent Company Guarantee in the event it is awarded the Contract, where applicable.
 - i) Legally binding undertaking confirming its commitment to establish a Jordanian legal entity and complete all required registrations in the event it is awarded the Contract **as Per Section V.**
 - j) Any other document required as specified in the **PDS.**
- 11.2 Submissions shall include the name, position, address, telephone number, email address and FAX number of a person who may be contacted for further information, if required, in respect to general, technical, and financial questions.
- 11.3 If an Applicant knowingly makes a misrepresentation, or an omission of a material fact, in submitting information to the Employer, such misrepresentation or omission may be sufficient ground for denying prequalification to that Applicant, rescinding the Applicant's prequalification, rejecting an Applicant or rescinding an award of the Contract, or terminating the Contract itself.
- 12 Application Submission Form**
- 12.1 The Applicant shall complete an Application Submission Form as provided in Section IV - Application Forms. This Form must be completed without any alteration to its format.
- 12.2 The Applicants must complete all the questionnaires and forms contained in this invitation to pre-qualify contractors. Where required, additional sheets shall be used and shall be properly referenced and identified.
- 13 Documents Establishing the Eligibility of the Applicant**
- 13.1 To establish its eligibility in accordance with ITA 4, the Applicant shall complete and sign the EIB- Environmental and Social Covenant and EIB -Covenant of Integrity Provided under Section VI without any alteration to its format and furnish supporting documentation as specified in Forms ELI1.1 and ELI1.2.
- 14 Documents Establishing the Qualifications of the Applicant**
- 14.1 To establish its qualifications to perform the contract(s) in accordance with Section III - Evaluation and Prequalification Criteria, the Applicant shall provide the information requested in the corresponding Forms included in Section IV - Application Forms.
- 14.2 Wherever an Application Form requires an Applicant to state a monetary amount, the Applicant shall state the value in US dollars.
- 15 Signing of the Application and Number of Copies**
- 15.1 The Applicant shall prepare one original of the documents comprising the Application as described in ITA 11 and clearly mark it "ORIGINAL". The original of the Application shall be typed or written in indelible ink and shall be signed by a person duly authorized to sign on behalf of the Applicant. In case the Applicant is a JV, the Application shall be signed by an authorized representative of the JV on behalf of the JV and so as to be legally binding on all the members as evidenced by a power of attorney signed by their legally authorized signatories. If a JV has not been

formalized and a letter of intent to form a JV is presented, then the Application shall be signed by every member of the intended JV.

- 15.2 The Applicant shall submit copies of the signed original Application, in the number specified in the **PDS**, and clearly mark them "COPY". In the event of any discrepancy between the original and the copies, the original shall prevail.

D. Submission of Applications

16 Sealing and Identification of Applications

- 16.1 The Applicant shall enclose the original and the copies of the Application in a sealed envelope that shall:
- a) Bear the name and address of the Applicant;
 - b) Be addressed to the Employer, in accordance with ITA 17.1; and
 - c) Bear the specific identification of this prequalification process indicated in the **PDS** 1.1.
- 16.2 The Employer will accept no responsibility for not processing any envelope that was not identified as required in ITA 16.1 above.

17 Deadline for Submission of Applications

- 17.1 Applicants may either submit their Applications by mail or by hand. Applications shall be received by the Employer at the address and no later than the deadline indicated in the **PDS**. When so specified in the **PDS**, Applicants have the option of submitting their Applications electronically, in accordance with electronic application submission procedures specified in the **PDS**.
- 17.2 The Employer may, at its discretion, extend the deadline for the submission of Applications by amending the Prequalification Documents in accordance with ITA 8, in which case all rights and obligations of the Employer and the Applicants subject to the previous deadline shall thereafter be subject to the deadline as extended.

18 Late Applications

- 18.1 The Employer reserves the right to accept or reject applications received after the deadline for submission of applications, unless otherwise specified in the **PDS**.

19 Opening of Applications

- 19.1 The Employer shall open all Applications at the date, time and place specified in the **PDS**. Late Applications shall be treated in accordance with ITA 18.1. Applications submitted electronically (if permitted pursuant to ITA 17.1) shall be opened in accordance with the procedures specified in the **PDS**. The Employer shall prepare a record of the opening of Applications to include, as a minimum, the name of the Applicants. A copy of the record shall be distributed to all Applicants.

E. Procedures for Evaluation of Applications

20 Confidentiality

- 20.1 Information relating to the Applications, their evaluation and result shall not be disclosed to Applicants or any other persons not officially concerned with the prequalification process until the notification of prequalification results is made to all Applicants in accordance with ITA 28.
- 20.2 From the deadline for submission of Applications to the time of notification of the results of the prequalification in accordance with ITA 28, any Applicant that wishes to contact the Employer on any matter related to the prequalification process (except as specified in 20.1 above), may do so only in writing.
- 20.3 Prequalification documents (or applications) submitted by applicants will be treated as confidential documents, but they will

not be returned.

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| 21 Clarification of Applications | <p>21.1 To assist in the evaluation of Applications, the Employer may, at its discretion, ask an Applicant for a clarification (including missing documents) of its Application, to be submitted within a stated reasonable period of time. Any request for clarification from the Employer and all clarifications from the Applicant shall be in writing.</p> <p>21.2 If an Applicant does not provide clarifications and/or documents requested by the date and time set in the Employer's request for clarification, its Application shall be evaluated based on the information and documents available at the time of evaluation of the Application.</p> <p>21.3 Notwithstanding the above, no amendment to the substance of an Application shall be permitted after the Applications have been opened. Clarifications shall only be sought to the extent necessary for the Employer to assess the Application.</p> |
| 22 Responsiveness of Applications | <p>22.1 The Employer may reject any Application which is not responsive to the requirements of the Prequalification Documents. An Application shall be considered as responsive if all documents mentioned in ITA 11 are submitted.</p> |
| 23 Domestic Bidder Price Preference | <p>23.1 Unless otherwise specified in the PDS, a margin of preference for domestic bidders shall not apply in the bidding process resulting from this prequalification.</p> |
| 24 Subcontractors | <p>24.1 Unless otherwise stated in the PDS, the Employer does not intend to execute any specific elements of the Works or Services by subcontractors selected in advance by the Employer (nominated subcontractors).</p> <p>24.2 A "specialized subcontractor" is a subcontractor hired for specialized work as defined by the Employer in Section III, Experience. If no specialized work is specified by the Employer as such, subcontractors' experience shall not be considered for Applications evaluation.</p> <p>24.3 The Employer may decide to permit subcontracting for certain specialized Works or Services as indicated in Section III, Experience. The Employer may do so at its own initiative or at the request of the Applicants during the prequalification process (if justified). When subcontracting is permitted by the Employer, the specialized subcontractor's experience shall be considered for the evaluation. Section III Evaluation and Prequalification Criteria, describes the qualification criteria for specialized subcontractors.</p> |
| 25 Evaluation of Applications | <p>F. Evaluation of Applications and Prequalification of Applicants</p> <p>25.1 The Employer shall use the factors, methods, criteria, and requirements defined in Section III - Evaluation and Prequalification Criteria, to evaluate the qualifications of the Applicants, and no other methods, criteria, or requirements shall be used. The Employer reserves the right to waive minor deviations from the qualification criteria if they do not materially affect the technical capability and financial resources of an Applicant to perform the contract.</p> <p>25.2 Only the qualifications of the Applicant shall be considered. In particular, the qualifications of a parent or other affiliated company that is not party to the Applicant under a JV in accordance with ITA 4.2 shall not be considered. Unless otherwise stated in the PDS.</p> |

- 25.3 In case of multiple contracts, Applicants should indicate in their Applications the individual contracts in which they are interested. The Employer shall prequalify each Applicant for the maximum combination of contracts for which the Applicant has thereby indicated its interest and for which the Applicant meets the appropriate aggregate requirements. The Evaluation and Prequalification Criteria are mentioned in Section III.
- 25.4 Non-applicable experience should be lined out or otherwise deleted so that only work satisfying the application's requirements is shown. If all the information requested is not provided or is incomplete, this may be cause for disqualification.
- 26 Employer's Right to Reject All Applications**
- 26.1 The Employer reserves the right to annul the prequalification process and reject all Applications at any time, without thereby incurring any liability to the Applicants.
- 26.2 The Employer reserves the right to accept or reject any or all applications without providing details or reasons for rejecting any application if it is deemed in the best interest of the Employer, EIB, U.S. DoS, or the public to do so.
- 27 Prequalification of Applicants**
- 27.1 All Applicants whose Applications substantially meet or exceed the specified qualification requirements will be prequalified by the Employer.
- 27.2 An Applicant may be "conditionally prequalified", that is, qualified subject to the Applicant submitting or correcting certain specified documents or deficiencies that do not materially affect the ability of the Applicant to perform the proposed contract, to the satisfaction of the Employer.
- 27.3 Applicants that are conditionally prequalified will be so informed along with the statement of the condition(s) which must be met to the satisfaction of the Employer before or at the time of submitting their bids.
- 28 Notification of Prequalification**
- 28.1 The Employer shall notify all Applicants in writing of the names of those Applicants who have been prequalified or conditionally prequalified. In addition, those Applicants who have been disqualified will be informed separately.
- 28.2 Pursuant to the notification referred to in 28.1, the Employer shall provide each Applicant with a summary of the relevant reasons underlying the pre-qualification decision.
- 29 Invitation for Bids**
- 29.1 Promptly after the notification of the results of the prequalification, the Employer shall invite bids from all the Applicants that have been prequalified or conditionally prequalified.
- 29.2 During Bidding Stage, Bidders shall be required to provide a Bid Security or a Bid-Securing Declaration acceptable to the Employer in the form and an amount to be specified in the Bidding Documents, and the successful Bidder shall be required to provide a Performance Security as specified in the Bidding Documents.
- 29.3 The successful Bidder either as individual or a JV shall be required to provide Performance Security and, as applicable, Parent Company Guarantee(s), as specified in the Bidding Documents.
- 29.4 This Performance Security and any Parent Company Guarantee shall comprehensively cover the entirety of the design-build phase and extend through the operation phase of the project. The Performance Security is intended to secure the bidder's obligations and responsibilities as delineated in the Bidding Documents, ensuring

- the fulfillment of all design, construction, and operational specifications and standards set in the Bidding Documents.
- 29.5 During the Design-Build Period, the liability shall include but not limited to all risks associated with the execution of the design and construction of the Works, including compliance with the approved specifications, drawings, and applicable laws and regulations. This liability shall also include any defects, errors, or omissions in the design, construction methodology, or workmanship, as well as the performance of any subcontractors or suppliers engaged which shall be covered under this Performance Security and any Parent Company Guarantee.
- 29.6 During the Operation Service Period, liability shall include, but not limited, to all risks associated with the operation and maintenance of the Works. Furthermore, it shall extend to include any malfunctions attributable to the design or construction of the Works, or the materials employed, which shall be covered under this Performance Security and any Parent Company Guarantee.
- 29.7 There is no obligation on the part of a prequalified bidder to submit a tender for a contract.
- 29.8 Prequalification does not relieve the ultimately selected bidder (contractor) from any obligation to perform and complete the contract in full conformity with the contract documents. Such contract documents shall supersede any conflicting or other provisions of this Prequalification Document.
- 30 Changes in Qualifications of Applicants**
- 30.1 Any change in the structure or formation of an Applicant, including Specialized Subcontractors, after being prequalified in accordance with ITA 27 and invited to bid (including, in the case of a JV, any change in the structure or formation of any member thereto) shall be subject to the written approval of the Employer. Such approval shall be denied if (i) as a consequence of the change, the Applicant no longer substantially meets the qualification criteria set forth in Section III Evaluation and Prequalification Criteria; or (ii) in the opinion of the Employer, the change may result in a substantial reduction in competition. Any such change should be submitted to the Employer not later than sixty (60) days after the date of the Invitation for Bids, unless otherwise agreed by the Employer.
- 31 Procurement Related Complaint**
- 31.1 Any person or entity having or having had an interest in obtaining the contract and (at risk of) being harmed by an alleged infringement from the applicable procurement rules, has the right to submit a complaint to the procuring entity and/or the national remedy mechanisms.
- 31.2 Candidates should alert WAI in writing, with a copy to the European Investment Bank to procurementcomplaints@eib.org, in case they should consider that certain clauses or provisions of the PQDs might limit international competition or introduce an unfair advantage to some candidates.
- 31.3 The procedures for making a Procurement-related Complaint are as set in clause 50 through 53 of Bylaw No. 8 of the year 2022 “Government Purchases Bylaw”.
- a) The provisions of the bylaw allow for submitting objection in the first stage and a complaint in the second stage.
- b) The objection on the purchase documents, or the advertisement conditions, or the prequalification documents, or decisions or

measures taken by the procuring entity, or any refrain from taking any action related to it, shall be submitted in writing or electronically to the procuring entity within five working days from the date of its publication and before the deadline for submitting offers whichever comes first.

- c)** Within 5 working days, the procuring entity should be able to respond in writing to the objection. Depending on the nature of the objection and for justified reasons, the procuring entity may require extra time to respond.
- d)** In the event that the objection is rejected, or the periods specified in the bylaw have expired without a decision being issued, the Applicant shall have the right to file a complaint in writing or electronically to the Purchase Complaints Review Committee.
- e)** The Purchase Complaints Review Committee is a committee established by the Council of Ministers and formed from those with experienced members and expertise to review purchase complaints. This committee may, on its discretion, form specialized technical committees to deal with the complaints received.

- 31.4 If the conclusion of the investigation as result of the complaint revealed a possible impact on the award decision, the successful tenderer will be notified of the delay of the award to allow appropriate remedy action to be taken.

Section II – Prequalification Data Sheet (PDS)

ITA 1.1: List of Glossary:

- **“Applicant (i.e. Single Entity or Joint Venture (JV))”** means a firm that is a private entity, a state-owned entity- or a combination of such entities in the form of a joint venture (“JV”) under an existing agreement or with the intent to enter into such an agreement supported by a letter of intent to apply for the prequalification and including any Specialized Contractors.
- **“Bidder”** means a firm that is a private entity, a state-owned entity- or a combination of such entities in the form of a joint venture (“JV”) under an existing agreement or with the intent to enter into such an agreement with the intent to provide goods, Works or Services as outlined in the bidding documents.
- **“JV-Leader” or “Lead Partner”** means member shall be authorized to: (i) act on behalf of the JV-Consortium during the prequalification process; (ii) incur liabilities and receive instructions on behalf of all JV-Consortium members; and (iii) represent the JV-Consortium throughout the procurement process. This authorization shall be evidenced by a legally binding Power of Attorney from the other members.
- **“Constructor”** means the EPC party responsible for the construction works of a project. This term is to be used in Form ELI-1.2 to identify the role of the JV member.
- **“Contractor”** means the entity or firm responsible for executing the Design-Build-Operate (DBO) services under this Project.
- **“Construction Specialized Subcontractor”** means entity/firm that will be subcontracted by the applicant to perform all of the construction services for the Works as Specialized Subcontractor.
- **“Design Specialized Subcontractor”** means entity/firm that will be subcontracted by the Contractor to perform part or all of the design services for the Works as Specialized Subcontractor.
- **“Designer”** means firm/entity performing professional design and related engineering services for the Works, including construction drawings and specifications. This term is to be used in **Form ELI-1.2** to identify the role of the JV member.
- **“Employer” also known as “Contracting Authority”** means the Water Authority of Jordan (WAJ).
- **“EPC Provider”** means an entity or firm contracted to deliver a project under a single agreement, responsible for the design (engineering), procurement of materials and equipment, and construction of the facility or infrastructure. This term is to be used in Form ELI-1.2 to identify the role of the JV member.
- **“Guarantor”** means the Parent Company that provides the Parent Company Guarantee.
- **“Hydropower Plant Construction Specialized Subcontractor”** means entity/firm that will be subcontracted by the Contractor to perform the construction works for the hydropower plant as Specialized Subcontractor.
- **“Joint Venture (JV)”** means a combination of private entities and/or state-owned enterprises, formed under an existing agreement or supported by a letter of intent to enter into such an agreement to perform the project. The JV may take the form of an unincorporated Consortium (referred to as “JV-Consortium”) or a legally constituted entity, such as a corporation or limited liability company (referred to as “JV-Legal Entity”).

- **“JV-Consortium”** means an unincorporated association of two or more companies that agree to collaborate for the purpose of jointly participating in the Project, without forming a separate JV-Legal Entity.
- **“JV-Legal Entity”** means a separate legal entity incorporated under applicable laws by its members, such as a limited liability company or any other recognized corporate form, established specifically for the purpose of participating in the Project and possessing its own legal personality.
- **“Management Contractor”** means the entity or firm that, in past projects, was responsible for managing and coordinating the design and construction activities. This term is used exclusively for the purpose of identifying relevant past experience of the Applicant and does not represent a role under this contract.
- **“O&M Services Provider”** means firm/entity performing the Operation and Maintenance Services. This term is to be used in Form ELI-1.2 to identify the role of the JV member.
- **“O&M Specialized Subcontractor”** means entity/firm will be subcontracted by the Contractor to perform the Operations and Maintenance (O&M) services for the project as Specialized Subcontractor.
- **“Parent Company”** means a legal entity that directly or indirectly owns, controls, or has a controlling interest in another company (the subsidiary), typically through ownership of a majority of voting shares or equivalent decision-making authority. For the purposes of this prequalification, the term “Parent Company” shall apply in the following contexts:
 1. JV-Legal Entity: Where a new entity is formed as a separate legal entity and lacks sufficient capitalization or financial resources to meet prequalification financial requirements, one of the member companies shall act as the Parent Company, providing financial and performance support through a Parent Company Guarantee.
 2. Reliance on Parent Financial Capacity: Where an Applicant (a single entity or a member of a JV-Consortium) relies on the financial capacity of its or a member’s parent company to meet prequalification financial requirements, that parent company shall be recognized as the Parent Company for the purposes of providing a Parent Company Guarantee to support the Applicant’s contractual obligations.
 3. Where an Applicant (whether a Single Entity, JV Consortium, JV Legal Entity, or subcontractor) establishes a Jordanian legal entity in accordance with Section V, the original foreign company shall be regarded as the Parent Company of the Jordanian entity and shall provide a Parent Company Guarantee to secure the obligations of the Jordanian entity under the Contract.
- **“Parent Company Guarantee”** means an irrevocable and unconditional guarantee provided by the member or Subsidiary’s parent company in favor of the Employer, as a primary obligation, to ensure the due performance and fulfillment of all the Contractor’s obligations and liabilities under the Contract or separately for the Design-Build Period and the Operation Service Period. This guarantee includes indemnification of the Employer against damages, losses, and expenses arising from any failure to perform in accordance with the Contract and remains effective until all such obligations and liabilities have been fully discharged. For clarification, the successful Bidder may include a single guarantee for the entire Contract Period or separate guarantees for the Design-Build Period and the Operation Service Period, as will be determined during the Bidding Stage.

- **“Performance Security”** means a financial guarantee provided by the successful Bidder to secure the proper performance of its obligations under the Contract, as set out in the Bidding Documents. It ensures compliance with all design, construction, and operational requirements and protects the Employer against default or non-performance, including through any form of security specified in the Bidding Documents, such as bank guarantees, performance bonds, or other acceptable instruments.
- **“Prime Contractor”** means to the lead entity or firm that, in past projects, held primary contractual responsibility for the design, construction, and/or operation, ensuring fulfillment of all obligations in accordance with contract terms. This term is used solely to describe the Applicant's prior experience and does not indicate a role under this contract.
- **“Specialized Subcontractor”** means a subcontractor hired for specialized work or services as defined by the Employer under Section III.
- **“Subcontractor”** means entity or firm hired by the prime contractor to perform a specific part of the work or services on a project.

A. General	
ITA 1.1	The Employer is: Water Authority of Jordan Tenders and Procurement Directorate 6th floor Shmeisani - Behind the Marriott Hotel P.O. Box 5012, Amman 11181 Hashemite Kingdom of Jordan Attn: Eng. Rua Alsoub Email: rua_alsoub@mwi.gov.jo
ITA 1.1	The contract comprising the IPC is: <u>Design Build and Operate (DBO) of the Wadi Zarqa Wastewater Treatment Plant Phase 1</u>
ITA 1.1	IPC Number is: Tender No. 33/2025
ITA 2.1	The name of the Project is: <u>Design Build and Operate (DBO) of the Wadi Zarqa Wastewater Treatment Plant Phase 1</u>
ITA 4.1	Firms originating from all countries of the world are eligible to tender for the project. Jordanian Contractors intending to participate either as a Single Entity or as a partner in a Joint Venture/Consortium must satisfy the classification as First Grade in Wastewater Treatment Plants; First Grade in Construction/ Buildings; First Grade in Water/Wastewater; and First Grade Electromechanical Works and Services , all combined, as per the Ministry of Public Works and Housing (MOPWH) /General Tendering Department (GTD)classification system. Jordanian subcontractors engaged by the Contractor shall be required to hold a First Grade classification in the specific discipline of the works assigned to them under the project. For instance, an electrical or mechanical subcontractor shall hold a First-Grade classification in Electromechanical Works. The Applicant will have to demonstrate that it owns the required capacity and references for the design and construction of the WWTP during the Design-Build Period and for the operation and maintenance of the plant during the Operation Service Period, by itself or through Specialized Subcontractors as shown in Section III – Evaluation and Prequalification Criteria. In-case of JV, the JV-Consortium or JV-Legal Entity shall not exceed three (3) members, whether direct or indirect, that contribute to meeting the prequalification requirements, the following shall be considered, the applicants shall indicate for the Joint Venture the participation (in percentage) of each member and of the Lead Partner:

	1. If an applicant is a JV that wishes to prequalify jointly for the Project, it may do so either as a JV-Consortium or through a JV-Legal Entity (each as defined in 2. below). The provisions set out in this document apply to both forms, except where expressly stated otherwise. 2. “JV-Consortium” means an unincorporated association of two or more companies that agree to collaborate for the purpose of jointly participating in the Project, without forming a separate JV-Legal Entity. “JV-Legal Entity” means a separate legal entity incorporated under applicable laws by its members, such as a limited liability company or any other recognized corporate form, established specifically for the purpose of participating in the Project and possessing its own legal personality. 3. The JV (i.e. the JV-Consortium or the JV-Legal Entity) must collectively satisfy the prequalification criteria. The relevant qualifications, experience, and financial capacity of each member shall be aggregated for the purpose of assessing the applicant’s overall capacity as Section III – Evaluation and Prequalification Criteria. However, legally binding commitments are required from each contributing member confirming that all resources, experience, and other factors referenced in the Prequalification Application and assessed during the prequalification process will be made available to the Employer. 4. The Application shall clearly set out the proposed allocation of work tasks, responsibilities, and resources among the JV members, including a description of each member’s role and contribution to the execution of the Project. 5. Notwithstanding the aggregated assessment in paragraph (3. above), each member of a JV-Consortium or JV-Legal Entity must individually meet the applicable requirements as set out in Section III – Evaluation and Prequalification Criteria. <u>JV-Consortium:</u> 6. If the applicant is a JV-Consortium, all members shall be jointly and severally liable for the obligations of the JV-Consortium. A statement to this effect shall be included in the Prequalification Application. 7. If the JV-Consortium members do not meet the financial requirements, then indications of commitments for the Parent Company Guarantee (or Guarantees) and Performance Security shall be submitted in the Application in addition to the forms mentioned in Section IV – Application Forms 8. Upon awarding the contract, The JV-Consortium shall provide Performance Security or Parent Company Guarantee where applicable, for the entire Contract Period or separate members shall provide a separate Performance Security for the Design-Build Period and for the Operation Service Period for the obligations of the Consortium, as required in the Bidding Documents. <u>JV-Legal Entity:</u> 9. After submitting the Prequalification Application and being prequalified, an Applicant applying as a Joint Venture may establish new JV-Legal Entity if it is awarded the contract (which must be a Jordanian Legal Entity; see No. 14 below and Section V). In such case: (i) Indications of commitments for the Parent Company Guarantee (or Guarantees) and Performance Security shall be submitted in the Application in addition to the forms mentioned in Section IV – Application Forms, confirming that all resources, experience, and other factors referenced in the JV’s Prequalification Application will remain available to the JV-Legal Entity; (ii) Upon awarding the contract, a member shall provide a Parent Company Guarantee and Performance Security for the entire Contract Period
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	or separate members shall provide a separate Parent Company Guarantee and Performance Security for the Design-Build Period and for the Operation Service Period for the obligations of the JV-Legal Entity as required in the Bidding Documents. Other Terms: 10. As part of the Application, the Applicant shall submit either: (i) a duly certified consortium agreement (in the case of a JV-Consortium) or a shareholder agreement (in the case of a JV-Legal Entity); or (ii) a letter of intent signed by all members of the JV-Consortium or all owners of the JV-Legal Entity, confirming their intention to enter into such an agreement in the event the applicant is awarded the contract. 11. The JV agreement or letter of intent shall set out the intended structure of the JV-Consortium or JV-Legal Entity, the respective roles and responsibilities (including %) of each member or owner, and their commitment to jointly execute the Project in accordance with the terms of the Prequalification Application. 12. The JV-Consortium or JV-Legal Entity shall nominate one member as the JV-Leader, who shall be authorized to: (i) act on behalf of the JV-Consortium or JV-Legal Entity during the prequalification process; (ii) incur liabilities and receive instructions on behalf of all JV-Consortium members or JV-Legal Entity members; and (iii) represent the JV-Consortium or JV-Legal Entity throughout the procurement process. This authorization shall be evidenced by a legally binding Power of Attorney from the other members. 13. The Water Authority of Jordan (WAJ) reserves the right, at its sole discretion, to accept or reject any modifications to the composition of joint venture members or partners after the prequalification submission deadline. Changes proposed to joint venture arrangements will be subject to approval by WAJ, in consultation with the European Investment Bank (EIB) and the United States Department of State (U.S. DoS). WAJ retains full authority, alongside EIB and U.S. DoS, to determine the acceptability of such changes. 14. Whether the Applicant applies for prequalification as a Single Entity, a JV-Consortium, or JV-Legal Entity, in all cases, if the Applicant is selected as the successful bidder, it must establish a Jordanian Legal Entity in accordance with Jordanian law and requirements to implement the Project as outlined in Section V. The Contract Agreement shall not be signed until the Successful Bidder (Single Entity or Joint Venture as Per Section V Eligibility Criteria) has established a Jordanian company and completed all required procedures and registrations in accordance with the Ministry of Industry and Trade and the Jordanian Construction Contractors Association (JCCA) in accordance with JCCA Law No. 13 of 1987 and its subsequent amendments and instructions. Registration is also required with the Jordanian Engineers Association (JEA) under JEA Law No. 15 of 1972 and its amendments, along with compliance with any further legal requirements from the Jordanian National Building Council (JNBC) and the Ministry of Public Works and Housing (MPWH).
ITA 4.4	Each Applicant shall submit a statement in the forms of Application Submission Form and covenant of Integrity and Environment and Social Covenant, certifying it has not had any such association or business relationship that would constitute a conflict of interest.
B. Contents of the Prequalification Documents	
ITA 7.1	For clarification purposes only, the Employer's address is: Attention: Eng. Rua Alsoub

	Water Authority of Jordan Tenders and Procurement Directorate 6th floor Shmeisani - Behind the Marriott Hotel P.O. Box 5012, Amman 11181 Hashemite Kingdom of Jordan Tel: +962 6 5669965 Fax: +962 6 5652278 Electronic mail address: Rua_Alsoub@mwi.gov.jo Clarifications to be submitted not later than December 08, 2025, 12:00 PM (Jordan Time)									
ITA 7.1 & 8.2	Web page: https://www.mwi.gov.jo/AR/Modules/tenders									
C. Preparation of applications										
ITA 10.1	1) The Application as well as all correspondence shall be submitted in English. 2) The language for translation of supporting documents and printed literature is English. 3) All information shall be in the English language, and any information submitted in other languages will not be considered.									
ITA 15.2	Applicants must submit a hard copy and soft copy (flash drive) of their application. The application must include a cover page that should bear: (i) The name and address of the Applicant; (ii) The address of the Employer, in accordance with the Prequalification Data Sheet (PDS) ITA 17.1; and (iii) The specific identification of this prequalification process indicated in the PDS ITA 1.1. <u>Hard Copy Submission:</u> The hard copy should be submitted in sealed envelopes, in accordance with Instructions to Applicants (ITA) no. 15 and ITA no. 16.1 delivered to the address below, and be clearly marked “Application to Prequalify for the Design Build and Operate (DBO) of Wadi Zarqa Wastewater Treatment Plant Phase 1 – Tender No. 33/2025.” <u>Soft Copy Submission:</u> A soft copy on a Flash Drive which contains one searchable PDF version shall be submitted <u>Number of Copies:</u> In addition to the original, the number of copies to be submitted with the Application is: one (1) paper copy and one (1) soft copy (flash drive). <table border="1" style="margin-left: auto; margin-right: auto;"> <tr> <th></th><th>Paper Copy</th><th>Soft Copy</th></tr> <tr> <td>Original</td><td>(1)</td><td>(1)</td></tr> <tr> <td>Copy #1</td><td>(1)</td><td>(1)</td></tr> </table> In case of differences between the documents on the softcopy and the hard copy, the hard copy shall take precedence in the evaluation process. <u>Electronic Submission:</u> Electronic submission will not be accepted The deadline for the receipt in WAJ is legally binding.		Paper Copy	Soft Copy	Original	(1)	(1)	Copy #1	(1)	(1)
	Paper Copy	Soft Copy								
Original	(1)	(1)								
Copy #1	(1)	(1)								

D. Submission of Applications	
ITA 17.1	The deadline for Application submission is: Date: December 29, 2025 Time: 12:00 PM (Jordan Local Time) Attention: Eng. Rua Alsoub Water Authority of Jordan Tenders and Procurement Directorate 6th floor Shmeisani - Behind the Marriott Hotel P.O. Box 5012, Amman 11181 Hashemite Kingdom of Jordan Electronic mail address: Rua_Alsoub@mwi.gov.jo <u>Electronic Submission:</u> Electronic submission will not be accepted
ITA 18.1	Late Applications will be returned unopened to the Applicants.
ITA 19.1	The opening of the Applications shall be at: Date: December 29, 2025 Time: 1:00 PM (Jordan Local Time) Address: Water Authority of Jordan WAJ offices, First Floor Shmeisani PO Box 5012 City: Amman 11181 Country: Jordan
E. Submission of Applications	
ITA 24.1	Rules regarding the selection and approval of subcontractors will be provided to pre-qualified contractors with the Invitation for Bids (IFB). The Contractor shall not subcontract any part of the Works or Services without the prior consent of the EIB, U.S. DoS, and the Employer. The Council of Ministers decided to exempt the Zarqa Wastewater Treatment Plant project from the requirement that Jordanian classified contractors be awarded at least 35% of the total contract value, due to the project's strategic importance. The tendering process will proceed without applying this condition, in accordance with regulations.
ITA 24.2 & 24.3	As indicated in Section III.
ITA 25	An Applicant cannot rely on the technical qualifications of a parent or other affiliated company that is not part of the Joint Venture (JV) or a Specialized Subcontractor. Only the technical qualifications of the firms included in the Applicant will be considered in the evaluation. An Applicant may rely on the financial qualifications of a parent or other affiliated company that is not part of the Joint Venture (JV), provided that the parent or affiliated company formally commits to support the Applicant in the form of a Parent Company Guarantee. In such cases, the Applicant shall submit a legally binding undertaking or commitment letter from the parent or affiliated company for such Parent Company Guarantee with the prequalification application in addition to the Forms mention in Section IV – Application Forms. If the Applicant is prequalified and awarded the contract, the parent or affiliated company must furnish an unconditional Parent Company Guarantee acceptable to the Employer at the time of Bid submission.

	This guarantee shall oblige the parent or affiliated company to take full financial responsibility and to assure the performance of the Contractor's obligations under the Contract.
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Section III – Evaluation and Prequalification Criteria

Evaluation

This Section contains all the methods, criteria, and requirements that the Employer shall use to evaluate Applications. The information to be provided in relation to each requirement and the definitions of the corresponding terms are included in the respective Application Forms.

Wherever an Application Form requires an Applicant to state a monetary amount, the Applicant shall state the value in US dollars.

Wherever an Application Form requires an Applicant to state a monetary amount, Applicants should indicate the U.S. dollar (USD) equivalent using the rate of exchange 30 days before prequalification submission, as reported by the Central Bank of Jordan.

If the applicant, as a Joint Venture of up to three members, is a New JV-legal entity, then that entity can rely on its member(s)' technical qualifications to execute the required work and services and to satisfy the prequalification criteria below.

In accordance with ITA 24.2 and 24.3, the following cases will be recognized as “specialized subcontractors”. Otherwise, the experience of subcontractors shall not be taken into consideration during the evaluation of Applications:

- A) Applicant may nominate an International or Jordanian Consultancy firm owning the required Design experience / capacity as “specialized subcontractor” referred to as the “Design Specialized Subcontractor”.*
- B) Applicant may nominate an International or Jordanian firm owning the required Hydropower construction experience / capacity as “specialized subcontractor” referred to as the “Hydropower plant Construction Specialized Subcontractor”.*
- C) Applicant may nominate an International or Jordanian firm owning the required Hydropower design experience / capacity as “specialized subcontractor” referred to as the “Hydropower plant Design Specialized Subcontractor”.*
- D) Applicant may nominate an International or Jordanian firm owning the required O&M experience / capacity as “specialized subcontractor” referred to as the “O&M Specialized Subcontractor”.*
- E) In case an O&M Company wishes to prequalify as a Single Entity, it may nominate an International or Jordanian firm possessing the required construction experience and capacity as a “Specialized Subcontractor,” hereinafter referred to as the “Construction Specialized Subcontractor”.*

Prequalification Criteria

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
1. Eligibility and Qualification Criteria (including Specialized Subcontractors, if applicable)						
1.1 Nationality	Nationality in accordance with ITA 4.3	Must meet requirement	Existing or intended JV must meet requirement	Must meet requirement	N/A	Forms ELI-1.1 and ELI-1.2, with attachments
1.2 Conflict of Interests	No conflicts of interest in accordance with ITA 4.4	Must meet requirement	Existing or intended JV must meet requirement	Must meet requirement	N/A	Application Submission Form & Covenants in Section VI.
1.3 EIB & U.S. DoS Eligibility	Eligible to receive EIB and U.S. DoS funding, as described in ITA 4.3	Must meet requirement	Existing or intended JV must meet requirement	Must meet requirement	N/A	Application Submission Form & Covenants in Section VI.
1.4 State-Owned Entity	Meet conditions of ITA 4.1, 4.3, & Section V	Must meet requirement	Existing or intended JV must meet requirement	Must meet requirement	N/A	Forms ELI-1.1 and ELI-1.2, with attachments
2. Historical Contract Non-performance (including Specialized Subcontractors, if applicable)						
2.1 History of Nonperforming Contracts	Termination of a contract did not occur as a result of Applicant’s default in the past five (5) years ¹ .	Must meet requirement	Must meet requirement	Must meet requirement ²	N/A	Form CON-2

¹ Non-performance shall include all terminations of contracts where (a) non-performance was not challenged by the Applicant, including through referral to the dispute resolution mechanism under the respective contract, and (b) contracts that were so challenged but fully settled against the Applicant. Non-performance shall not include contracts where Employers decision was overruled by the dispute resolution mechanism.

² This requirement also applies to contracts executed by the Applicant as JV member.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
2.2 Suspension Based on Execution of Bid Securing Declaration by the Employer	Applicants shall declare any suspension imposed on them as a result of the execution of a Bid-Securing Declaration. The Employer, EIB, and U.S. DoS will review the information disclosed; however, disclosure alone shall not necessarily lead to exclusion unless decided by these parties.	Must Declare	Must Declare	Must Declare	N/A	Application Submission Form. Section VI-Covenant of Integrity.
2.3 Pending Litigation	All pending litigations shall in total not represent more than one hundred percent (100%) of the Applicant's net worth and shall be treated as resolved against the Applicant.	Must meet requirement	N/A	Must meet requirement	N/A	Form CON-2
3. Financial Situation and Performance						
3.1 Financial Capabilities: Liquidity	The Applicant shall demonstrate that it has access to, or has available liquid assets, unencumbered real assets, lines of credit (to be evidenced by bank letters of support), and other financial means (independent of any contractual advance payment) sufficient to meet the construction cash flow requirements estimated as \$50,000,000.00 Fifty Million USD) for the subject contract(s) net of the Applicant's other commitments;	Must meet requirement	for JV-Consortium: Must meet requirement, if no Guarantor	N/A	for JV-Legal Entity: Must meet requirement with Guarantor(s)	Forms FIN-3.3 and FIN-3.4
3.2 Financial Capabilities: Other Source of Finance	The Applicant shall also demonstrate, to the satisfaction of the Employer, that it has capacity to finance the cash flow requirements on Works and Services currently in progress and for future contract commitments; Applicant to demonstrate financial capacity as follows:	Must meet requirement	for JV-Consortium: Must meet requirement, if no Guarantor	N/A	for JV-Legal Entity: Must meet requirement with Guarantor(s)	Form FIN-3.1 with attachments and Forms FIN-3.3 and FIN-3.4 Related Forms to be filled and stamped by the same Financial Auditing Company of the applicant, or any other reputable Financial Auditing Company

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
	A) Total equity (net worth) > \$50,000,000 Fifty Million USD; B) Average liquidity (current ratio) for the last three (3) years ,(2024,2023,2022)> 1 ((Current assets) / (Current liabilities) > 1)					
3.3 Financial Capabilities: Applicant's financial position	The audited financial statements acceptable to the Employer, for the last three (3) years ,(2024,2023,2022) shall be submitted and demonstrate the current soundness of the Applicant's financial position. The Applicant's financial position will be deemed sound if the following criteria are met: A) Average earnings before interest, taxes, depreciation, and amortization (EBITDA) for the last three (3) years,(2024,2023,2022) > 0; AND B) Average debt to equity ratio for the last three (3) years ,(2024,2023,2022) < 3 ((Total Financial Liabilities) / (Total Shareholders' equity))	Must meet requirement	N/A	Must meet requirement, unless Guarantor(s) provided that meets requirements	N/A	Form FIN-3.1 with attachments Related Forms to be filled and stamped by the same Financial Auditing Company of the applicant, or any other reputable Financial Auditing Company
3.4 Minimum Annual Turnover	Minimum average annual turnover for the last three (3) years: Average annual turnover for the last three (3) years (2024,2023,2022) > \$100,000,000 (One Hundred Million USD).	Must meet requirement	for JV-Consortium: Must meet requirement, if no Guarantor	N/A	for JV-Legal Entity: Must meet requirement with Guarantor(s)	Form FIN-3.2 Related Forms to be filled and stamped by the same Financial Auditing Company of the applicant, or any other reputable Financial Auditing Company

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
4. Experience (Some criteria throughout 4 may be met by Specialized Subcontractors as indicated)						
4.1 General Construction Experience	Experience under construction contracts that have been satisfactorily and substantially³ completed in the role of prime contractor, JV member⁴, subcontractor, or management contractor for at least three (3) conventional and/or design & build contracts, each of minimum value \$150,000,000.00 (One Hundred and Fifty Million USD), between 1st January 2010 and application submission deadline. Out of the three (3) projects, at least two must be fully and satisfactorily completed (not ongoing).	Must meet requirement	Must meet requirement ⁵	N/A	N/A	Form EXP-4.1 For each mentioned experience, are requested: - In case of on-going Works and Services: Letter of the client specifying the technical and financial characteristics of the Works and Services In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client.
4.2a Specific Construction & Contract Management Experience (WWTP)	A minimum number of construction contracts of similar nature ⁶ as specified below that have been satisfactorily and substantially ⁷ completed as a prime contractor, joint venture member ⁸ , management contractor or subcontractor between 1st January 2010 and the application submission deadline:	Must meet requirement	Must meet requirement	N/A	N/A	Form EXP-4.2 For each mentioned experience, are requested: - In case of on-going Works and Services: Letter of the client specifying the technical

³ Substantial completion shall be based on 80% or more Works and Services completed under the contract.

⁴ For contracts under which the Applicant participated as a joint venture member or subcontractor, only the Applicant's share, by value, shall be considered to meet this requirement.

⁵ In the case of a JV, the value of contracts completed by its members shall not be aggregated to determine whether the requirement of the minimum value of a single contract has been met. For instance, if the criterion mentions "two (2) contracts with a minimum value of 150M\$ each", a JV composed of 3 members and having carried out four (4) contracts of 100M\$ each shall not be qualified. On the other hand, if 2 of the 3 members of the JV each carried out one (1) contract of 150M\$, the criterion is met, even if the third member does not have any contract of this value.

⁶ Adding up small value contracts (less than the value specified under requirement) to meet the overall requirement will not be accepted.

⁷ Substantial completion shall be based on 80% or more Works and Services completed under the contract.

⁸ For contracts under which the Applicant participated as a joint venture member or subcontractor, only the Applicant's share, by value, shall be considered to meet this requirement.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
	a) Number: A minimum number of two (2) construction contracts conventional (i.e. Build) and / or Design & Build of Municipal WWTP, b) Capacity Criteria: Each contract of a minimum WWTP capacity of 75,000 m ³ /day. c) Minimum key technical requirements of each contract: The WWTP process must incorporate a minimum of the following components: biological nutrient removal through an activated sludge process, secondary clarifiers, disinfection system, facilities for sludge thickening and dewatering, sludge digestion, and combined heat and power (CHP) units. d) Out of the two (2) projects, at least one must be fully and satisfactorily completed (not ongoing).					and financial characteristics of the Works and Services In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client.
4.2b Specific Construction & Contract Management Experience (Conveyance)	A minimum number of contracts of similar nature ⁹ as specified below that have been satisfactorily and substantially ¹⁰ completed as a prime contractor, joint venture member ¹¹ , management contractor or subcontractor between 1st January 2010 and the application submission deadline:	Must meet requirement	Must meet requirement	N/A	N/A	Form EXP-4.2 For each mentioned experience, are requested: - In case of on-going Works and Services: Letter of the client specifying the technical and financial

⁹ Adding up small value contracts (less than the value specified under requirement) to meet the overall requirement will not be accepted.

¹⁰ Substantial completion shall be based on 80% or more Works and Services completed under the contract.

¹¹ For contracts under which the Applicant participated as a joint venture member or subcontractor, only the Applicant's share, by value, shall be considered to meet this requirement.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
	A) Number: A minimum number of two (2) contracts conventional (i.e. Build) and / or Design & Build of Conveyance System, B) Water or Wastewater conveyance pipeline with diameter not less than 1200 mm and not less than 9 km pipeline length. C) Out of the two (2) projects, at least one must be fully and satisfactorily completed (not ongoing).					characteristics of the Works and Services In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client.
4.2c Specific Construction & Contract Management Experience (Hydropower Plant)	A minimum number of contracts of similar nature¹² as specified below that have been satisfactorily completed as a prime contractor, joint venture member¹³, management contractor or subcontractor between 1st January 2010 and the application submission deadline: A) Number: A minimum number of one (1) completed contract conventional (i.e. Build) and / or Design & Build of Hydropower Plants, B) a Hydropower plant with a capacity of minimum 0.5 MW (Any Application).	Must meet requirement The Applicant may rely on the experience of a named Hydropower plant Construction Specialized Subcontract	Must meet requirement	N/A	One Partner or Specialized Subcontractor named as the “Hydropower plant Construction Specialized Subcontractor” on Form ELI – 1.1 must meet these requirements	Form EXP-4.2 For each mentioned experience, are requested: In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client.
4.3a Specific Design Experience (WWTP)	Experience of design of at least two (2) WWTP Contracts completed between 1st January 2010 and application submission deadline:	Must meet requirement. The Applicant may rely on	Must meet requirement.	N/A	One Partner or Specialized Subcontractor named as the “Design Specialized	Form EXP – 4.3 For each mentioned experience, are requested: In case of on-going Works and Services:

¹² Adding up small value contracts (less than the value specified under requirement) to meet the overall requirement will not be accepted.

¹³ For contracts under which the Applicant participated as a joint venture member or subcontractor, only the Applicant’s share, by value, shall be considered to meet this requirement.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
	A) Number: A minimum number of two (2) contracts conventional (i.e. Design) and / or Design & Build of Municipal WWTP, B) Capacity Criteria: Each contract of a minimum WWTP capacity of 75,000 m³/day. C) Minimum key technical requirements of each contract: The WWTP process must incorporate a minimum of the following components: biological nutrient removal through an activated sludge process, secondary clarifiers, disinfection system, facilities for sludge thickening and dewatering, sludge digestion, and combined heat and power (CHP) units. D) Out of the two (2) projects, at least one must be fully and satisfactorily completed (not ongoing). The design experience shall cover, based on the contract type (either Conventional Design or Design-Build/DBO), the Preliminary Design, Final Design, and where applicable, the Shop Drawings phases for each discipline (Civil, Architectural, Process, Mechanical, Structural, HVAC, Plumbing, Electrical, and Instrumentation, etc.)	the experience of a named Design Specialized subcontractor			subcontractor" on Form ELI – 1.1 must meet these requirements	Letter of the client specifying the technical and financial characteristics of the Works and Services In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client
4.3b Specific Design Experience (Conveyance)	Experience of design of at least two (2) Water or Wastewater Conveyance Contracts completed between 1 st January 2010 and application submission deadline each with a minimum of the following criteria:	Must meet requirement. The Applicant may rely on the	Must meet requirement.	N/A	One Partner or Specialized Subcontractor named as the "Design Specialized	Form EXP – 4.3 For each mentioned experience, are requested: In case of on-going Works and Services:

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
	A) Number: A minimum number of two (2) contracts conventional (i.e. Build) and / or Design & Build of Conveyance System, B) Water and/or Wastewater conveyance pipeline with diameter not less than 1200 m and not less than 9 km pipeline length. C) Out of the two (2) projects, at least one must be fully and satisfactorily completed (not ongoing). The design experience shall cover, based on the contract type (either Conventional Design or Design-Build/DBO), the Preliminary Design, Final Design, and where applicable, the Shop Drawings phases for each discipline (Civil, Architectural, Process, Mechanical, Structural, HVAC, Plumbing, Electrical, and Instrumentation, etc.)	experience of a named Design Specialized subcontractor			subcontractor " on Form ELI – 1.1 must meet these requirements	Letter of the client specifying the technical and financial characteristics of the Works and Services In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client
4.3c Specific Design Experience (Hydropower Plant)	Experience of design of at least one (1) Hydropower Plant Contracts completed between 1st January 2010 and application submission deadline each with a minimum of the following criteria: A) Number: A minimum number of one (1) contract conventional (i.e. Build) and / or Design & Build of Hydropower Plants, B) a Hydropower plant with a capacity of minimum 0.5 MW (Any Application).	Must meet requirement. The Applicant may rely on the experience of a named Hydropower plant Design Specialized Subcontractor or	Must meet requirement.	N/A	One Partner or Specialized Subcontractor named as the "Hydropower plant Design Specialized Subcontractor" on Form ELI – 1.1 must meet these requirements	Form EXP – 4.3 For each mentioned experience, are requested: In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
4.4 Specific Experience: Operation & Maintenance of WWTP	Applicants must provide a minimum of Two (2) Operation and Maintenance (O&M) contracts within the period from January 1st, 2010, to the application submission deadline that must either: ▪ have been substantially completed as a prime contractor or subcontractor, or ▪ have been continuously operational for at least 50 % of the contract duration. Each of the contracts required above shall meet the following minimum key requirements: Duration: 1. One contract with a 10-year minimum duration. 2. One contract with a 5-year minimum duration. Capacity Criteria: Each contract of a minimum WWTP capacity of 75,000 m³/day. Minimum key technical requirements of each contract: The WWTP process must incorporate a minimum of the following components: biological nutrient removal through an activated sludge process, secondary clarifiers, disinfection system, facilities for sludge thickening and dewatering, sludge digestion, and combined heat and power (CHP) units.	Must meet requirement. The Applicant may rely on the experience of a named O&M Specialized subcontractor	Must meet requirement.	N/A	One Partner or Specialized Subcontractor named as the "O&M Sub-Specialized contractor" on Form ELI – 1.1 must meet these requirements	Form EXP – 4.4 For each mentioned experience, are requested: In case of on-going Works and Services: Letter of the client specifying the technical and financial characteristics of the Works and Services In case of accomplished Works and Services: a duly signed certificate of performance, completion from the client.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
5. Environmental, Social, Health and Safety (ESHS)						
5.1 ESHS Certification(s)	Availability of a valid ISO certification or internationally recognized equivalent (equivalency to be demonstrated by Applicant), and applicable to the worksite. ☒ Quality management certificate ISO 9001¹⁴; ☒ Environmental management certificate ISO 14001¹⁵ ☒ Health and safety management certificate ISO 45001¹⁶.	Must meet requirement	N/A	N/A	Lead Partner must meet requirement	Form CER
5.2 ESHS Documentation	Availability of in-house policies and procedures acceptable to the Employer for ESHS management: - Existence of an Ethics Charter; - Existence of a system for monitoring compliance with ESHS commitments for the Applicant's subcontractors and all its partners; - Existence of official company procedures for the management of the following relevant points:	Must meet requirement	N/A	N/A	Lead Partner must meet requirement	- The ESHS Ethics Charter of the company or equivalent must be provided. - A procedure or information on how the Bidder ensures that all members of the Joint Venture, subcontractors, suppliers and temporary labor (i) are aware and (ii)

¹⁴ The ISO 9001 certification covers the principles of quality management, including a strong customer focus, motivation and commitment of management, process approach and continuous improvement.

¹⁵ The ISO 14001 certification defines the criteria for an environmental management system.

¹⁶ The ISO 45001 certification defines a management system for health and safety at work with the overall objective of preventing the occurrence of work related injuries and diseases among workers and providing safe and healthy workplaces.

Criterion	Requirement	Single Entity	JV-Consortium or JV-Legal Entity (existing or intended)			Documentation Required
			All Parties Combined	Each Member	One Member	
	☒ ESHS resources and facilities and ESHS monitoring organization; ☒ Project Areas management (base camps, quarries, borrow pits, storage areas); ☒ Health & Safety on worksites; ☒ Relations with stakeholders, information and consultation of local communities and authorities; ☒ Traffic management; ☒ Wastewater (effluents); ☒ Protection of water resources; ☒ Atmospheric emissions, noise and vibrations; ☒ Site rehabilitation and revegetation ☒ Waste management Erosion and sedimentation;					meet ESHS requirements must be provided. 3. Official internal procedure documents on the topics indicated must be provided.
5.3 Similar Experience	Experience of at least two conventional and/or Design/Build construction contracts over the last 15 years , where major ESHS measures were carried out or are on progress satisfactorily and in compliance with international standards.	Must meet requirement	N/A	N/A	Lead Partner must meet requirement	Form EXP-ESHS with supporting documents (the Applicant shall submit a piece of evidence supporting the ESHS implementation measures)
5.4 ESHS Dedicated Personnel	Availability of in-house personnel dedicated to ESHS issues: Environmental and Social Manager, and/or Health and Safety Manager.	Must meet requirement	N/A	N/A	Lead Partner must meet requirement	Organizational chart evidencing filled ESHS position(s)

Section IV – Application Forms

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Application Submission Form

Date: _____ *[insert day, month, and year]*IPC No. and title: _____ *[insert IPC number and title]*To: _____ *[insert full name of Employer]*

We, the undersigned, apply to be prequalified for the referenced IPC and declare that:

- a) We have examined and have no reservations to the Prequalification Documents, including Addendum(s) No(s). *[insert the number and issuing date of each addendum]*, issued in accordance with Instructions to Applicants (ITA 8);
- b) We have no conflict of interest in accordance with ITA 4.4 and PDS 4.4;
- c) We have not been suspended nor declared ineligible by the Employer based on execution of a Bid Securing Declaration in the Employer's country. *If the Applicant has been suspended or declared ineligible, details shall be specified in Section VI-Covenant of Integrity.*
- d) We understand that you reserve the right to annul the prequalification process and reject all Applications at any time, without thereby incurring any liability to the Applicants.

Signed *[insert signature(s) of an authorized representative(s) of the Applicant]* and all firms included in the Application (i.e., members, specialized subcontractors, and guarantor(s))

Name: _____

[insert full name of person signing the Application]

In the capacity of: _____

[insert capacity of person signing the Application]

Duly authorized to sign the Application for and on behalf of:

Applicant's name: _____

[insert full name of Applicant or the name of the JV]

Address: _____

[insert street number/town or city/country address]

Dated on: _____ day of: _____ year: _____

[For a joint venture, either all members shall sign or only the authorized representative, in which case the power of attorney to sign on behalf of all members shall be attached. In case of a letter of intent to form a joint venture, it shall be attached, and all members shall sign it.]

Form ELI-1.1: Applicant Information Form

Date: *[insert day, month, year]*IPC No. and title: *[insert IPC number and title]*Page *[insert page number]* of *[insert total number]* pages

Applicant's name: _____ <i>[insert full name]</i>
In case of Joint Venture (JV), name of each member: _____ <i>[insert full name of each member in JV]</i>
In case of a JV, Applicant's actual or intended country of constitution: _____ <i>[indicate country of Constitution]</i>
Applicant's actual or intended year of constitution: _____ <i>[indicate year of Constitution]</i>
Applicant's legal address (in country of constitution): _____ <i>[insert street / number / town or city / country]</i>
Applicant's authorized representative information: Name: _____ <i>[insert full name]</i> Address: _____ <i>[insert street / number / town or city / country]</i> Telephone/Fax numbers: _____ <i>[insert telephone/fax numbers, including country and city codes]</i> Email address: _____ <i>[indicate email address]</i>
1. Attached are copies of original documents of: ☐ Articles of Constitution (or equivalent documents of association), of the legal entity named above. ☐ In case of JV, letter of intent to form JV-Consortium or JV-Legal Entity, or agreement for JV-Consortium or JV-Legal Entity, in accordance with ITA 4.1. ☐ In case of state-owned enterprise or institution, in accordance with ITA 4.3, documents establishing: • Legal and financial autonomy • Operation under commercial law • That the Applicant is not dependent agency of the Employer
2. Included are the organizational chart, a list of Board of Directors, and the beneficial ownership.

Signed *[insert signature(s) of an authorized representative(s) of the Applicant]* and all firms included in the Application (i.e., members, specialized subcontractors, and guarantor(s))

Form ELI-1.2:
Applicant's JV Information Form

[The following table shall be filled by each member of a Joint Venture and, if applicable, by any specialized subcontractor, and in that case substitute "Applicant's JV member" for "specialized subcontractor".]

Date: *[insert day, month, year]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

Applicant name: _____ <i>[insert full name]</i>
Applicant's JV Member's name: _____ <i>[insert full name of Applicant's JV Member]</i>
Applicant's JV Member's country of constitution: _____ <i>[indicate country of constitution]</i>
Applicant's JV Member's year of constitution: _____ <i>[indicate year of constitution]</i>
Applicant's JV Member's legal address in country of constitution: _____ <i>[insert street / number / town or city / country]</i>
Applicant's JV Member's authorized representative information: Name: _____ <i>[insert full name]</i> Address: _____ <i>[insert street / number / town or city / country]</i> Telephone/Fax numbers: _____ <i>[insert telephone/fax numbers, including country and city codes]</i> Email address: _____ <i>[indicate email address]</i>
1. Attached are copies of original documents of: ☒ Articles of Constitution (or equivalent documents of association), of the legal entity named above. ☒ In case of state-owned enterprise or institution, in accordance with ITA 4.3, documents establishing: • Legal and financial autonomy • Operation under commercial law • That the Applicant is not dependent agency of the Employer
2. Included are the organizational chart, a list of Board of Directors, and the beneficial ownership.

Signed *[insert signature(s) of an authorized representative(s) of the Applicant]* and all firms included in the Application (i.e., members, specialized subcontractors, and guarantor(s))

[Each JV member shall indicate their role—whether as EPC Provider, O&M Provider, Constructor, or Designer. Similarly, any specialized subcontractor shall clearly state their role as specified in Section III.]

Form CON-2:
Historical Contract Non-performance-, Pending Litigation and Litigation History

[The following table shall be filled in for the Applicant and for each member of a Joint Venture and Specialized Subcontractors]

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

Non-Performed Contracts in accordance with Section III - Evaluation and Prequalification Criteria			
☐ Contract non-performance did not occur since 1st January <i>[insert current year number less 5]</i> specified in Section III - Evaluation and Prequalification Criteria, criterion 2.1.			
☐ Contract(s) not performed since 1 st January <i>[insert current year number less 5]</i> specified in Section III - Evaluation and Prequalification Criteria, criterion 2.1, as indicated below:			
Year	Non-performed portion of contract	Contract Identification	Total Contract Amount (current value, currency, exchange rate and USD equivalent)
<i>[insert year]</i>	<i>[insert amount and percentage]</i>	Contract Identification: <i>[indicate complete contract name/ number, and any other identification]</i> Name of Employer: <i>[insert full name]</i> Address of Employer: <i>[insert street/city/country]</i> Reason(s) for non-performance: <i>[indicate main reason(s)]</i>	<i>[insert amount]</i>

Pending Litigation, in accordance with Section III - Evaluation and Prequalification Criteria			
☐ No pending litigation in accordance with Section III - Evaluation and Prequalification Criteria, criterion 2.3.			
☐ Pending litigation in accordance with Section III - Evaluation and Prequalification Criteria, criterion 2.3 as indicated below:			
Year of dispute	Amount in dispute (currency)	Contract Identification	Total Contract Amount (currency), USD Equivalent (exchange rate)
[insert year]	[insert amount]	Contract Identification: [indicate complete contract name, number, and any other identification] Name of Employer: [insert full name] Address of Employer: [insert street/city/country] Matter in dispute: [indicate main issues in dispute] Party who initiated the dispute: [indicate "Employer" or "Contractor"] Status of dispute: [indicate if it is being treated by the Adjudicator, under Arbitration or being dealt with by the Judiciary, specify "pending" or "settled"]	[insert amount]
[insert year]	[insert amount]	...	[insert amount]
...	...	...	...

Form FIN-3.1:
Financial Situation and Performance

[The following table shall be filled in for the Applicant and for each member of a Joint Venture]

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

1. Financial data

Type of Financial information in <i>[indicate currency]</i>	Historical Information for Previous 3 years (amount in currency, exchange rate, USD equivalent)		
	Year 1 2022	Year 2 2023	Year 3 2024
Statement of financial position (information from balance sheet)			
Total assets (TA)			
Total financial liabilities ¹			
Total equity/Net worth (NW)			
Current assets			
Current liabilities			
Cash and cash equivalents			
Working capital (WC)			
Information from income statement			
Total turnover/revenue			
Earnings before interest, taxes, depreciation, and amortization (EBITDA) ²			
Earnings before taxes (EBT)			
Cash flow information			
Cash flow from operating activities			

[If guarantor(s) support the Joint Venture legal entity or any consortium partner, they shall complete and sign this form on behalf of the party for which they act as guarantor]

- ¹ Means any financial indebtedness for and in respect of:
- a) any monies borrowed on a short, medium or long-term basis;
 - b) any bank overdraft;
 - c) any amounts raised pursuant to any bills of exchange issued to a third party (or any dematerialised equivalent of such instrument);
 - d) any amounts raised pursuant to any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instruments;
 - e) the amount of any liability in respect of any lease or hire purchase contract which would be treated as a finance or capital lease;
 - f) receivables sold or discounted (other than any receivables to the extent they are sold on a non-recourse basis).
- ² Means, for any given year, the aggregate of:
- (+) net income
 - (+) tax expense
 - (+/-) extraordinary income or expense
 - (+/-) financial result e
 - (+/-) net foreign exchange losses or gains
 - (+) net depreciation and amortization allowances and provisions

2. Financial Documents

The Applicant and, in case of a JV, each member, shall provide copies of financial statements for *three (3)* years pursuant Section III - Evaluation and Prequalification Criteria, criterion 3.1. The financial statements shall:

- a) Reflect the financial situation of the Applicant or in case of JV member, or as parent company support in accordance to PDS 25.
- b) Be independently audited or certified in accordance with local legislation;
- c) Be complete, including all notes to the financial statements;
- d) Correspond to accounting periods already completed and audited;

Where such financial statements are not published in English, a certified translation of key statements shall be provided, stamped by the company's auditor.

- ☐ Attached are copies of financial statements³ for the *three (3)* years required above; and complying with the requirements.

[If guarantor(s) support the Joint Venture legal entity or any consortium partner, they shall complete and sign this form on behalf of the party for which they act as guarantor]

³ If the most recent set of financial statements is for a period earlier than 12 months from the date of application, the reason for this should be justified.

**Form FIN-3.2:
Annual Turnover**

[The following table shall be filled in for the Applicant and for each member of a Joint Venture]

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

Year	Annual turnover data		
	Amount and Currency ¹	Exchange rate	USD Equivalent
<i>[Indicate calendar year]</i>	<i>[insert amount and indicate currency]</i>	<i>[insert exchange rates used to calculate the USD equivalent]</i>	<i>[insert USD equivalent]</i>
		Average Annual Turnover²	

[If guarantor(s) support the Joint Venture legal entity or any consortium partner, they shall complete and sign this form on behalf of the party for which they act as guarantor]

¹ The indicated turnover amounts must be identical as those appearing on the financial statements.

² See Section III - Evaluation and Prequalification Criteria, criterion 3.4.

**Form FIN-3.3:
Sources of Finance**

[The following table shall be filled in for the Applicant and all members combined in case of a Joint Venture]

Specify proposed sources of financing, such as liquid assets, unencumbered real assets, lines of credit, and other financial means, net of current commitments, available to meet the total construction cash flow demands of the subject contract or contracts as specified in Section III - Evaluation and Prequalification Criteria.

Financial Resources		
No.	Source of Financing	Amount (USD equivalent)
1		
2		
3		
...		

[If guarantor(s) support the Joint Venture legal entity or any consortium partner, they shall complete and sign this form on behalf of the party for which they act as guarantor]

Form FIN-3.4:
Current Contract Commitments / Works in Progress

Applicants and each member to a JV should provide information on their current commitments on all contracts that have been awarded, or for which a letter of intent or acceptance has been received, or for contracts approaching completion, but for which an unqualified, full completion certificate has yet to be issued.

Current Contract Commitments					
No.	Name of Contract	Employer's Contact Address, Tel, Fax	Value of Outstanding Work (Current USD Equivalent)	Estimated Completion Date	Average Monthly Invoicing Over Last Six Months (USD /month)
1					
2					
3					
4					
5					
...					

[If guarantor(s) support the Joint Venture legal entity or any consortium partner, they shall complete and sign this form on behalf of the party for which they act as guarantor]

Form EXP-4.1: General Experience

[The following table shall be filled in for the Applicant and in the case of a JV Applicant, each Member]

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

[Identify contracts that demonstrate continuous construction work over the past 15 years pursuant to Section III - Evaluation and Prequalification Criteria, criterion 4.1. List contracts chronologically, according to their commencement (starting) dates.]

Starting Year	Ending Year	Contract Identification	Role of Applicant
<i>[indicate year]</i> _____	<i>[indicate year]</i> _____	Contract Name: <i>[insert full name]</i> Brief description of the Works and Services performed by the Applicant: <i>[describe Works and Services performed briefly]</i> Amount of Contract: _____ <i>[insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>	<i>[insert "Prime Contractor" or "JV Member" or "Subcontractor" or "Management Contractor"]</i> _____
...	...	...	...

Form EXP-4.2: Specific Experience

[The following table shall be filled in for contracts performed by the Applicant or each member of a Joint Venture, or hydropower construction specialized sub-contractor]

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

Similar Contract No.: <i>[insert number] of [insert number of similar contracts required]</i>	Information		
Contract Identification:	<i>[insert contract name and number, if applicable]</i>		
Award Date:	<i>[insert day, month, year, i.e., 15 June, 2015]</i>		
Completion Date:	<i>[insert day, month, year, i.e., 03 October, 2017]</i>		
Role in Contract: <i>[check the appropriate box]</i>	☐ Prime Contractor	☐ Member in JV	☐ Management Contractor
Total Contract Amount:	<i>[insert total contract amount in local currency]</i>		____ USD <i>[insert Exchange rate and total contract amount in USD equivalent]</i>
If member in a JV or subcontractor, specify participation in total Contract amount:	____ % <i>[insert a percentage amount]</i>	<i>[insert total contract amount in local currency]</i>	<i>[insert exchange rate and total contract amount in USD equivalent]</i>
Employer's Name:	<i>[insert full name]</i>		
Address:	<i>[indicate street/number/town or city/country]</i>		
Telephone/Fax numbers:	<i>[insert telephone/fax numbers, including country and city area codes]</i>		
Email:	<i>[insert email address, if available]</i>		

**Form EXP-4.2:
Specific Experience (cont.)**

Applicant's Name: *[insert full name]*

Joint Venture Member's Name: *[insert full name]*

Similar Contract No.: <i>[insert number] of [insert number] of similar contracts required]</i>	Information
Description of the similarity in accordance with criterion 4.2(a, b, c) of Section III - Evaluation and Prequalification Criteria	
1. Amount	_____ – <i>[insert amount in local currency, exchange rate, USD in words and in figures]</i>
2. Physical size of required works items	_____ <i>[insert physical size of items]</i>
3. Complexity	_____ <i>[insert description of complexity]</i>
4. Methods/Technology	_____ <i>[insert specific aspects of the methods/technology involved in the contract]</i>
5. Construction rate for key activities	_____ <i>[insert rates and items]</i>
6. Other Characteristics	_____ <i>[insert other characteristics as described in Section VII - Scope of Works and Services]</i>

[The Applicant shall complete and submit this form separately for each of the experience criteria set forth in Section III – Evaluation and Prequalification Criteria, namely Criteria 4.2(a), 4.2(b), and 4.2(c).]

[The Applicant shall specify the wastewater-treatment plant capacity, the conveyance pipeline's diameter and length, and the hydropower capacity, each as applicable]

Form EXP - 4.3

Design Experience in DB and/or DBO

[The following table shall be filled in for the Applicant's Designer or the design subcontractor, or hydropower design specialized sub-contractor]

Designer's Name: *[insert full name]*

Date: *[insert day, month, year]*

Page *[insert page number]* of *[insert total number]* pages

[Identify contracts that demonstrate experience in the design of Design/Build and/or Design/Build/Operate Wastewater Treatment Plant projects, pursuant to Section III, Qualification Criteria and Requirements, Requirement 4.3. List contracts chronologically, according to their commencement (starting) dates.]

Starting Month / Year	Ending Month / Year	Contract Identification
<i>[indicate month/ year]</i>	<i>[indicate month/ year]</i>	Contract name: <i>[insert full name]</i> Brief Description of the Works and Services designed by the Applicant's designer: <i>[describe Works and Services performed briefly]</i> <i>[specify the wastewater-treatment plant capacity, the conveyance pipeline's diameter and length, and the hydropower capacity, each as applicable]</i> Amount of contract: <i>[insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>
		Contract name: <i>[insert full name]</i> Brief Description of the Works and Services designed by the Applicant's designer: <i>[describe Works and Services performed briefly]</i> <i>[specify the wastewater-treatment plant capacity, the conveyance pipeline's diameter and length, and the hydropower capacity, each as applicable]</i> Amount of contract: <i>[insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>
		Contract name: <i>[insert full name]</i> Brief Description of the Works and Services designed by the Applicant's designer: <i>[describe Works and Services performed briefly]</i> <i>[specify the wastewater-treatment plant capacity, the conveyance pipeline's diameter and length, and the hydropower capacity, each as applicable]</i> Amount of contract: <i>insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>

[The Applicant shall complete and submit this form to cover the experience criteria set forth in Section III – Evaluation and Prequalification Criteria, namely Criteria 4.3(a), 4.3(b), and 4.3(c)]

Form EXP - 4.4

Operation and Maintenance Experience

[The following table shall be filled in for the Applicant's O&M Services Provider or O&M specialized sub-contractor]

O&M Services Provider's Name: *[insert full name]*

Date: *[insert day, month, year]*

Page *[insert page number]* of *[insert total number]* pages

[Identify contracts that demonstrate experience in providing Operation and Maintenance for the type of facilities included in the Wadi Zarqa WWTP project, pursuant to Section III, Qualification Criteria and Requirements, Requirement 4.4. List contracts chronologically, according to their commencement (starting) dates.]

Starting Month / Year	Ending Month / Year	Contract Identification
<i>[indicate month/ year]</i>	<i>[indicate month/ year]</i>	Contract name: <i>[insert full name]</i> Brief Description of the Applicant's O&M Services Provider: <i>[describe Works and Services performed briefly, indicating plant capacity, and duration]</i> Amount of contract: <i>[insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>
		Contract name: <i>[insert full name]</i> Brief Description of the Applicant's O&M Services Provider: <i>[describe Works and Services performed briefly, indicating plant capacity, and duration]</i> Amount of contract: <i>[insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>
		Contract name: <i>[insert full name]</i> Brief Description of the Applicant's O&M Services Provider: <i>[describe Works and Services performed briefly, indicating plant capacity, and duration]</i> Amount of contract: <i>[insert amount in currency, mention currency used, exchange rate and USD equivalent]</i> Name of Employer: <i>[indicate full name]</i> Address: <i>[indicate street/number/town or city/country]</i>
		Etc.

Form CER:
Quality Management / Environmental, Social, Health and Safety (ESHS)
Certification

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

Certification *[Quality / Environmental / Health and Security]*

[Delete as appropriate]

DESCRIPTION	INFORMATION
Identification of the certificate:	<i>[insert full name of the certificate]</i>
Date of Issue:	<i>[insert day, month, year of first certificate award]</i>
Areas covered by the certificate:	<i>[activities and locations]</i>
Expiry Date:	<i>[insert day, month, year]</i>
Issuer's Name:	<i>[insert full name]</i>
Address:	<i>[insert street / number / town or city / country]</i>
Telephone/Fax numbers:	<i>[insert phone/fax no., incl. country & city area codes]</i>
Email:	<i>[insert email address, if available]</i>
Compliance with international standards	The certificate is <i>[ISO 9001, ISO 14001, ISO 45001]</i> <i>[select as appropriate]</i> ☐ Yes / ☐ No
If no, proof of conformity with ISO standards by the Applicant	The Applicant shall provide a conformity assessment of its certificate by an internationally recognized Accredited Certification Body

The Applicant shall fill this Form for each Certification required under criterion 5.1 of Section III - Evaluation and Prequalification Criteria.

Form EXP-ESHS:
Environmental, Social, Health and Safety (ESHS) Experience

Applicant's Name: *[insert full name]*

Date: *[insert day, month, year]*

Joint Venture Member's Name: *[insert full name]*

IPC No. and title: *[insert IPC number and title]*

Page *[insert page number]* of *[insert total number]* pages

Similar Contract No.: <i>[insert number] of [insert number of similar contracts required]</i>	Information		
Contract Identification:	<i>[insert contract name and number, if applicable]</i>		
Short Project Description (main scope and key values of project):	<i>[insert short project description]</i>		
Award date:	<i>[insert day, month, year]</i>		
Completion date:	<i>[insert day, month, year]</i>		
Role in Contract: <i>[check the appropriate box]</i>	☐ Prime Contractor	☐ Member in JV	☐ Management Contractor
Total Contract Amount:	<i>[insert total contract amount in local currency]</i>		<i>[insert total contract amount in USD equivalent with exchange rate]</i>
If party in a JV or subcontractor, specify participation of total contract amount:	% <i>[insert a percentage amount]</i>	<i>[insert total contract amount in local currency]</i>	<i>[insert total contract amount in USD equivalent with exchange rate]</i>
Employer's name:	<i>[insert full name]</i>		
Address:	<i>[insert street / number / town or city / country]</i>		
Telephone/Fax numbers:	<i>[insert phone/fax numbers, including country and city area codes]</i>		
Email:	<i>[insert email address, if available]</i>		

Similar Contract No.: <i>[insert number] of [insert number of similar contracts required]</i>	Information
Description of the ESHS challenges and measures implemented under the contract: a) ESHS Challenge: b) ESHS Risk Assessment Level: c) ESHS implemented measures (as per criterion 5.3 of Section III - Evaluation and Prequalification Criteria): d) ESHS Knowhow Transfer or ESHS Local Staff Capacity Building (as per criterion 5.4, if any, of Section III - Evaluation and Prequalification Criteria):	<i>[Insert description]</i> <i>[Insert classification of risk assessment as per development bank classification if applicable]</i> <i>[Provide a document supporting the implementation of ESHS measures, acceptable to the Employer¹]</i> <i>[Provide evidence of successful²:</i> — <i>ESHS knowhow transfer to local partners or subcontractors;</i> <i>or</i> — <i>ESHS capacity building to local staff under the contract.]</i>

¹ For example ESHS activity reports, ESHS final reports, ESHS inspection reports, supervision Engineer's reports, etc. Only documents evidencing implementation of ESHS measures shall be accepted.

² For example ESHS activity reports presenting training activities, training materials with attendance sheets, etc. Only documents evidencing ESHS knowhow transfer or ESHS local staff capacity building shall be accepted.

Section V – Eligibility Criteria

Eligibility in EIB & U.S. DoS -Financed Procurement

- **Eligibility of Services:**
- At the Prequalification Stage, Applicants originating from all countries of the world are eligible to apply for the prequalification. However, the Successful Bidder, together with its Contractors and Subcontractors, if not already incorporated as a Jordanian company, shall be required to establish a legal entity under the laws of Jordan and complete all required registrations, as follows:
 1. Where the Applicant is a Single Entity, it shall establish a Jordanian legal entity in accordance with Jordanian law and complete all required registrations.
 2. Where the Applicant is a member of a JV-Consortium, each such member shall establish a Jordanian legal entity in accordance with Jordanian law and complete all required registrations.
 3. Where the Applicant is a Joint Venture-Legal Entity, such Legal Entity shall be established in accordance with Jordanian law and complete all required registrations.
 4. Prequalified Contractors may engage Specialized Subcontractors and may engage other Subcontractors. In all cases, each Subcontractor shall establish a Jordanian legal entity in accordance with Jordanian law and complete all required registrations.

Each Applicant (whether a Single Entity, a JV partner, a JV-Legal Entity, or a Specialized Subcontractor) shall, as part of its Prequalification Application, submit a legally binding undertaking confirming its commitment to establish a Jordanian legal entity and complete all required registrations in the event it is awarded the Contract.

- **Other Considerations:**
- Contractors debarred by the Government Tenders Department of Jordan shall declare this status in the Covenant of Integrity under Section VI.

The web site for locating excluded EIB firms is <https://www.eib.org/en/about/accountability/anti-fraud/exclusion/index>.

- State-owned enterprises or institutions in the Employer's Country may participate only if they can establish that they (i) are legally and financially autonomous (ii) operate under commercial law, and (iii) are not dependent agencies of the Employer. To be eligible, a State-owned enterprise or institution shall establish to the EIB satisfaction, through all relevant documents, including its Charter and other information the EIB may request, that it: (i) is a legal entity separate from the government (ii) does not currently receive substantial subsidies or budget support; (iii) operates like any commercial enterprise, and, inter alia, is not obliged to pass on its surplus to the government, can acquire rights and liabilities, borrow funds and be liable for repayment of its debts, and can be declared bankrupt; and (iv) is not bidding for a contract to be awarded by the department or agency of the government which under their applicable laws or regulations is the reporting or supervisory authority of the enterprise or has the ability to exercise influence or control over the enterprise or institution.

Section VI – Corrupt and Fraudulent Practices – Environmental and Social Responsibility

EIB - Environmental and Social Covenant

We, the undersigned, commit to comply with – and ensuring that all of our sub-contractors comply with – all labour laws and regulations applicable in the country of implementation of the contract, as well as all national legislation and regulations and any obligation in the relevant international conventions and multilateral agreements on environment applicable in the country of implementation of the contract.

Labour standards. We further commit to the principles of the eight Core ILO standards¹ pertaining to: child labour, forced labour, non-discrimination and freedom of association and the right to collective bargaining. We will (i) pay rates of wages and benefits and observe conditions of work (including hours of work and days of rest) which are not lower than those established for the trade or industry where the work is carried out; and (ii) keep complete and accurate records of employment of workers at the site.

Workers relations. We therefore commit to developing and implementing a Human Resources Policy and Procedures applicable to all workers employed for the project in line with Standard 8 of the EIB's Environmental and Social Handbook. We will regularly monitor and report on its application to Water Authority of Jordan as well as on any corrective measures periodically deemed necessary.

Occupational and Public Health, Safety and Security. We commit to (i) complying with all applicable health and safety at work laws in the country of implementation of the contract; (ii) developing and implementing the necessary health and safety management plans and systems, in accordance with the measures defined in the Project's Environmental and Social Management Plan (ESMP) and the ILO Guidelines on occupational safety and health management systems, ILO-OSH 2001²; (iii) providing workers employed for the project access to adequate, safe and hygienic facilities as well as living quarters in line with the provisions of Standard 9 of the EIB's Environmental and Social Handbook for workers living on-site; and (iv) using security management arrangements that are consistent with international human rights standards and principles, if such arrangements are required for the project.

Protection of the Environment. We commit to taking all reasonable steps to protect the environment on and off the site and to limit the nuisance to people and property resulting from pollution, noise, traffic and other outcomes of the operations. To this end, emissions, surface discharges and effluent from our activities will comply with the limits, specifications or stipulations as defined in ESIA³ and the international and national legislation and regulations applicable in the country of implementation of the contract.

Environmental and social performance. We commit to (i) submitting monthly environmental and social monitoring reports to Water Authority of Jordan; and (ii) complying with the measures assigned to us as set forth in the environmental permits ESIA⁴ and any corrective or preventative actions set forth in the annual environmental and social monitoring report. To this end, we will develop and implement an Environmental and Social Management.

System commensurate to the size and complexity of the Contract and provide Water Authority of Jordan with the details of the (i) plans and procedures, (ii) roles and responsibilities and (iii) relevant monitoring and review reports.

We hereby declare that our tender price as offered for this contract includes all costs related to our environmental and social performance obligations as part of this contract. We commit to (i) reassessing, in consultation with Water Authority of Jordan, any changes to the project design that may potentially cause negative environmental or social impacts; (ii) providing Water Authority of Jordan with a written

¹<http://www.ilo.org/global/standards/introduction-to-international-labour-standards/conventions-and-recommendations/lang--en/index.htm>

² http://www.ilo.org/safework/info/standards-and-instruments/WCMS_107727/lang--en/index.htm

³ For instance: ESIA (Environmental and Social Impact Assessment) and ESMP (Environmental and Social Management Plans).

⁴ For instance: ESIA (Environmental and Social Impact Assessment) and ESMP (Environmental and Social Management Plans).

notice and in a timely manner of any unanticipated environmental or social risks or impacts that arise during the execution of the contract and the implementation of the project previously not taken into account; and (iii) in consultation with Water Authority of Jordan, adjusting environmental and social monitoring and mitigation measures as necessary to assure compliance with our environmental and social obligations.

Environmental and social staff. We shall facilitate the Employer's ongoing monitoring and supervision of our compliance with the environmental and social obligations described above. For this purpose, we shall appoint and maintain in office until the completion of the contract an Environmental and Social Management Team (scaled to the size and complexity of the Contract) that shall be reasonably satisfactory to the Employer and to whom the Employer shall have full and immediate access, having the duty and the necessary powers to ensure compliance with this Environmental and Social Covenant.

We accord the Employer and the EIB and auditors appointed by either of them, the right of inspection of all our accounts, records, electronic data and documents related to the environmental and social aspects of the current contract, as well as all those of our subcontractors.

Name: _____ In the capacity of _____

Signed: _____

Duly authorised to sign the contract for and on behalf of: _____

Date: _____

[For a joint venture, either all members shall sign or only the authorized representative, in which case the power of attorney to sign on behalf of all members shall be attached. In case of a letter of intent to form a joint venture, it shall be attached and all members shall sign it.]

EIB - Covenant of Integrity

[Name of lead tenderer] hereby declare and covenant, on our behalf and on that of our joint venture partners, if any, for **[Design Build and Operate (DBO) of the Wadi Zarqa Wastewater Treatment Plant Phase 1]** managed by Water Authority of Jordan (the “**Contract**”), that neither we nor anyone, including any of our directors, employees, agents or subcontractors for the Contract, acting on our behalf with due authority or with our knowledge or consent or facilitated by us (together, the “**Associated Entities and Persons**”), nor any of our parent, subsidiary or affiliate companies,

- (i) have engaged in any Prohibited Conduct¹ in connection with the tendering process, nor will we or the Associated Entities and Persons engage in such Prohibited Conduct during the execution of the Contract;
- (ii) are listed or otherwise subject to EU/United Nations sanctions;²
- (iii) are the subject of a current decision of exclusion by the European Investment Bank;
- (iv) during the 5 (five) years immediately preceding the date of this Covenant, have been convicted in any court or sanctioned³ by any authority (irrespective of whether such conviction or sanction is still in force) of any offence on grounds comparable to Prohibited Conduct in connection with a tendering process or any provision of works, goods or services; or
- (v) are excluded or subject to enforcement actions or otherwise sanctioned⁴ by the EU institutions or bodies, or any multilateral development bank,⁵ on grounds comparable to Prohibited Conduct, or have been under such exclusion, enforcement action or sanction the effectiveness of which ceased no more than 5 (five) years immediately preceding the date of this Covenant.

We will immediately inform you if any instance described under (i) to (v) above in respect of us or any of the Associated Entities and Persons comes to the attention of any person in our organisation having responsibility for ensuring compliance with this Covenant at any time during the tendering process and, if successful, during the Contract.

We further declare and covenant that, if successful, neither us nor any of the Associated Entities and Persons will act in contravention of EU/United Nations sanctions during the execution of the Contract.

If applicable, we provide below the details of all convictions, exclusions or other sanctions, exclusion/sanctions proceedings, and/or enforcement actions, listed above under paragraphs (i) to (v), in respect of us or any of the Associated Entities and Persons, together with details of the measures taken, or to be taken, to ensure that no Prohibited Conduct is committed in connection with the tendering process or with the execution of the Contract (*if not applicable, please indicate not applicable in the table below*):

Name of entity	Details of disclosure	Measures taken or to be taken

¹ Corruption, fraud, collusion, coercion, obstruction, theft at EIB Group premises, misuse of EIB Group resources or assets, money laundering or financing of terrorism, all as defined in the EIB Group Anti-Fraud Policy, available at <https://www.eib.org/en/publications/anti-fraud-policy> and as amended from time to time.

² EU sanctions or restrictive measures pursuant to Chapter 2 of Title V of the EU Treaty and the objectives of the Common Foreign and Security Policy set out in Article 21 of the EU Treaty and Article 215 of the Treaty on the Functioning of the EU, either autonomously or pursuant to the sanctions decided by the United Nations Security Council on the basis of Article 41 of the United Nations Charter.

³ Including a fine or any other financial penalty, irrespective of whether paid yet or not.

⁴ Including any decision having an effect similar to conditional non-exclusion, temporary suspension, letters of reprimand, or self-restraint.

⁵ Including the World Bank Group, the African Development Bank, the Asian Development Bank, the European Bank for Reconstruction and Development, the European Investment Bank and the Inter-American Development Bank.

We, or any of the Associated Entities and Persons, have paid, or will pay, the following commissions, gratuities or fees with respect to the tendering process or execution of the Contract *[insert complete name of each recipient, its full address, the reason for which each commission, gratuity or fee was paid, or will be paid, and the amount and currency of each such commission, gratuity or fee]*:

Name of recipient	Address	Reason	Amount

For the duration of the tendering process and, if we are successful, for the duration of the Contract, we will appoint and maintain in office an officer who shall be a person reasonably satisfactory to you and to whom you shall have full and immediate access, having the duty, and the necessary powers, to ensure compliance with this Covenant.

We grant the Water Authority of Jordan, the European Investment Bank, and any persons appointed by it and/or any authority or European Union institution or body having competence under European Union law, the right to (i) visit the sites, installations and works, (ii) interview our representatives and any other relevant person and (iii) inspect and copy our books and records in connection with the tendering process or the Contract, and we shall require our Associated Entities and Persons with knowledge of the Contract to respond to questions from the European Investment Bank and to provide to it any information or documents necessary for the investigation of allegations of Prohibited Conduct.

We agree to preserve our books and records and ensure that the books and records of the Associated Entities are preserved generally in accordance with applicable law but in any case for at least 6 (six) years from the date of tender submission and, in the event we are awarded the Contract, at least 6 (six) years following the date of substantial performance of the Contract. We shall ensure that in any agreements with Associated Entities concerning the execution of the Contract provisions to the effect of this paragraph are included.

We acknowledge that any failure to comply with the obligations under this Covenant of Integrity (including any omission or misrepresentation, made knowingly or recklessly, of a past conviction, exclusion, other sanction or enforcement action), or any unauthorised amendment to the Covenant, may be considered a breach of the EIB Group Anti-Fraud Policy and thus result in the rejection of our tender for the Contract and/or cause the initiation of exclusion proceedings by the EIB against us and/or any of the Associated Entities and Persons.

SIGNED by a duly authorised representative with the requisite power and authority to sign on behalf of its company and, in the case of a joint venture bid, on behalf of each member thereof:

Date:

Name of company:

Name of signatory:

Position of signatory:

Signature:

[For a joint venture, either all members shall sign or only the authorized representative, in which case the power of attorney to sign on behalf of all members shall be attached. In case of a letter of intent to form a joint venture, it shall be attached, and all members shall sign it.

PART 2 – Works and Services Requirements

Section VII – Scope of Works and Services

Disclaimer:

The technical information provided in this section regarding the plant background, process units, conveyance length, and diameter is for preliminary informational purposes only and is not intended to be legally binding on the employer and should not be relied upon as a source for any decision-making or contractual obligations. The details presented are subject to change and may not reflect the final specifications or requirements of the project.

PROJECT BACKGROUND

The Amman-Zarqa River Basin Area is the largest wastewater collection basin in Jordan. Currently this area primarily discharges its wastewater to the As Samra wastewater treatment plant. Due to Jordan's population growth, migration from rural areas to Amman and Zarqa, as well as with the influx of refugees, the wastewater flow to the As Samra plant exceeded its original design capacity in early 2013. To treat the increased wastewater flows, the Water Authority of Jordan (WAJ) expanded the WWTP in 2012, but by 2022, the wastewater flow to the plant had exceeded the expanded capacity. To address the present and anticipated additional wastewater flow from this catchment area, the Ministry of Water and Irrigation (MWI) has commenced the project to construct an additional Wadi Zarqa WWTP downstream of As Samra WWTP. This new facility will cater for a portion of the augmented flow from the existing catchment areas, as well as from new areas currently not serviced by the As Samra WWTP.

The Wadi Zarqa WWTP will be the second largest WWTP in Jordan. The plant will have an initial capacity of 150,000 m³/day under Phase I, which will be expanded by an additional 200,000 m³/day under Phase II, bringing the total capacity to 350,000 m³/day. The plant will serve the Rouseifa and Zarqa areas, east of Jordan, as well as the north Amman areas. The WWTP will discharge treated wastewater effluent to Wadi Zarqa, which flows to the King Talal Dam where it will be blended with stormwater gathered at the dam reservoir for use as irrigation in the Jordan Valley. Once completed, the new Wadi Zarqa WWTP will provide reliable sanitation services to approximately 2.0 to 3.8 million people.

The current plan for Wadi Zarqa WWTP Phase 1 construction funding is through a grant from U.S. DoS and soft loans from the European Investment Bank (EIB) with a contribution from the MWI to cover land acquisition and other costs. The EIB loan will be provided as a sovereign loan to the Hashemite Kingdom of Jordan represented by the Ministry of Planning and International Cooperation and the Ministry of Water and Irrigation.

A key project goal is to phase out the pumping of wastewater to As Samra WWTP from WZPS and East Zarqa Pump Station (EZPS) by placing the new Wadi Zarqa WWTP downstream close to the Zarqa River to allow for gravity conveyance. This will lead to energy savings from reduced pumping. The new WWTP will reduce the annual operational costs by eventual decommissioning pumping stations and it will also reduce greenhouse gas emissions by generating more than 80 percent of the treatment plant power demand through renewable energy. The Wadi Zarqa Phase I is designed assuming that the As Samra WWTP will continue operating at its design annual average daily plant capacity of 364,800 m³/day. The time frame for the project is critical because the As Samra WWTP is already at its annual average design capacity based on current and projected annual average flow data.

The new Wadi Zarqa WWTP Phase 1 located at Zarqa Governorate will be provided through a DBO contract with a treatment plant capacity of 150,000 m³/day (average annual day).

The proposed Wadi Zarqa WWTP project main components include:

- **Component 1:** New Wadi Zarqa WWTP (with a capacity of 150,000 m³/day under Phase 1 expandable to 350,000 m³/day under Phase 2),
- **Component 2:** New conveyance system including two conveyor pipelines, West Zarqa conveyor to be implemented under Phase 1 and East Zarqa conveyor to be implemented under Phase 2,

- **Component 3:** Expansion and connection of the West Zarqa PS Pretreatment facility to conveyance system (to be implemented under Phase 1),
- **Component 4:** Connection of the East Zarqa PS Pretreatment facility to conveyance system (to be implemented under Phase 2), and
- **Component 5:** North Zarqa Pretreatment and conveyance system (to be implemented under Phase 2).

The project scope includes the design, supply, delivery, construction, commissioning and operation, maintenance, hand-over, replacement and renewal of the wastewater treatment plant and associated facilities including the conveyance system and pretreatment facilities for Phase 1 only. The project scope includes the planning and conceptual design of interfaces between Phase 1 and Phase 2. The interface design must include (but is not limited to) the design of earthworks, yard piping and key mechanical equipment, buildings and electrical systems for Phase 2 to ensure the economical and efficient installation of Phase 2 while maintaining Phase 1 plant operations.

1. **Description of the Works and Services**

a. **Overall Project Overview (Phase 1 and Phase 2)**

The Wadi Zarqa WWTP site is located along the Wadi Zarqa route downstream of the existing As Samra WWTP, which is in Zarqa and Mafraq Governorates. It will serve the Zarqa governorate areas as well as surrounding towns and villages northeast of Amman. The treatment plant will discharge treated wastewater into Wadi Zarqa, which flows to the King Talal Dam, a key water asset for Jordan. The Dam is primarily used for irrigation purposes in the Jordan Valley. The Project is therefore of strategic importance and would be the second largest WWTP in Jordan. The design horizon for the WWTP capacity is 2049.

The proposed Wadi Zarqa WWTP will ultimately serve 3.8 million people spread over an area that is larger than the current catchment area of As Samra WWTP and will be constructed in two phases to include the following areas:

- WZPS catchment area – serving northern parts of Amman, and western areas of Zarqa
- EZPS catchment area – serving northeastern Zarqa and Al Hashemiya (phase 2)
- Northern Zarqa Catchment Area (NZCA) – which will serve areas that couldn't be conveyed by gravity to EZPS or WZPS (phase 2)

The Wadi Zarqa WWTP project will consist of the following treatment processes:

▪ **Component 1 – WWTP:**

The design horizon for the WWTP is 2049, and will be constructed into two phases:

- Phase 1: 150,000 m³/day to be brought online in 2030 to treat 60–80 percent of the West Zarqa PS flow from 2030 to 2034
- Phase 2: an additional 200,000 m³/d to be brought online in 2034, taking the total treatment capacity at Wadi Zarqa to 350,000 m³/day

The WWTP main components may include, but are not limited to:

- Hydropower plant at WWTP Inlet.
- Primary treatment including primary clarifiers
- Secondary treatment with biological nutrient removal and back-up chemical nutrient removal
- Optional tertiary treatment filtration
- Chlorine disinfection

- Waste Activated Sludge and Return Activated Sludge (WAS/RAS)
- Chemical storage and dosing facilities
- Sludge line may consist of:
 - ✓ Sludge storage tanks
 - ✓ Gravity thickening for primary sludge and mechanical thickening for waste activated sludge (WAS).
 - ✓ Thermal hydrolysis process to produce Class A biosolids
 - ✓ Mesophilic anaerobic digestion with CHP
 - ✓ Dewatering of digested sludge
 - ✓ Dewatered sludge will be further dried in a solar sludge drying facility or holding bays
 - ✓ Sludge screening
- Odor control
- Yard piping
- Site works including all utilities
- Power supply and distribution system, including interface with CHP
- Administration & visitor's center, power, maintenance, blowers, sludge pumping, chlorination, dewatering, digester equipment, and combined heat and power buildings.
- Electrical, instrumentation and control (SCADA) including flow and wastewater quality monitoring
- Phase 1 site configuration to readily accommodate, in an economic manner, the Phase 2 expansion as will be demonstrated as part of the Phase 1 design which will include appropriate expansion design to clearly identify planned interfaces and optimized use of the available WWTP site.
- **Component 2 – Conveyor System:**
 - **West Zarqa Conveyor Pipeline:**

As part of Phase I, 1600mm -1700mm diameter (to be verified) 12 km long pipeline will connect the existing WZPS to the WWTP. The proposed pipeline will be constructed by removing and replacing the existing 40-year-old 1200mm diameter steel pipeline/siphon that currently is in deteriorated condition and used only sporadically during high flows. The proposed line will be designed to operate under an internal pressure of up to 6 bar as it will provide flow to the hydropower plant at the WWTP with a capacity of 1.4 MW at Phase I and 3.2 MW at Phase 2. The upper 8 km of the line will be constructed within the existing 15 m wide easement. The lower 4 km of the line will require a new easement up to 12 m wide and will generally follow an existing roadway alignment. The Employer will be responsible for any land purchases. The construction will be open cut, except for road crossings at Jerash Road and Doqara Rd that will require jacking (trenchless) operations and a pipe bridge or inverted siphon at the Zarqa River crossing. A third jacking crossing may be required at the recently completed road embankment just north of the WZPS. It is important to note that the upper 8 km of new conveyance pipeline will also be constructed adjacent to an

active transmission pipeline from the WZPS to the As Samra WWTP and under no circumstances can the operation of that transmission pipeline be impacted.

The DBO contractor is strongly encouraged to walk the proposed alignment during the bidding period.

- **East Zarqa Conveyor Pipeline:**

As part of Phase 2, a new 1000 mm diameter (to be verified) pipeline will connect the existing EZPS to the WWTP. The East Zarqa pipeline will run parallel to the West Zarqa pipeline along the lower section of the West Zarqa pipeline as the two lines work under different pressures and will convey flows independently to the WWTP. There will be some land acquisition required along the alignment and this will be acquired by the EMPLOYER during Phase I to preserve the alignment.

The DBO bid documents will include an option to include the installation of the last segment of the new East Zarqa pipeline in the Phase 1 work. This approach will optimize overall project costs and eliminate the need to retrench along the lower portion of WZ conveyance pipeline. The Phase 1 project will include an optional bid item to construct the Phase 2 EZ conveyance pipeline where it parallels the WZ conveyance pipeline and allow for common trench construction. The upstream portion would be capped for a future connection and the downstream portion would be connected at the new WWTP.

- **Component 3 – West Zarqa Pump Station Pretreatment:**

The pre-treatment facilities at the WZPS will be expanded from 10,500 m³/hr to 18,000 m³/hr (to be verified) to provide additional pre-treatment for the flows to the Wadi Zarqa WWTP. This site receives flow from the Ain Ghazal pipeline as well as from the Rousseifa and West Zarqa area. The pre-treatment is necessary to protect the turbine units at the hydropower station at the Wadi Zarqa WWTP and is currently being used to protect similar hydropower units at the As Samra WWTP. The existing pumping station will remain in service throughout Phase 1 construction and will remain in partial service to provide partial flows to the As Samra WWTP via the existing force main for the optimum use of the As Samra Build Operate Transfer (BOT) Contract once the new Wadi Zarqa WWTP is operational in Phase 1. The As Samra Project Company (SPC) currently operates the pump station and the EMPLOYER will coordinate and obtain from SPC the rights for the DBO contractor to access the site and to come to agreement on requirements for the proposed construction on the site. The DBO contractor will not be allowed to adversely impact or jeopardize the operation of the WZPS. Further constraints and allowances will be defined in the Invitation for Bids.

Currently, the SPC contract is to operate the pump station until December 30, 2025. This contract will need to be extended or taken over by the EMPLOYER so that flows can continue to be pumped to the As Samra plant throughout the Wadi Zarqa WWTP construction and after it comes online in 2030. Eventually after Wadi Zarqa Phase 2, it is expected the WZPS will be decommissioned and only the pretreatment facilities will remain in service.

- **Component 4 – East Zarqa Pump Station Pretreatment (to be implemented under Phase 2):**

As described in Component 2, the East Zarqa Conveyor Pipeline will be connected to the EZPS pretreatment facilities. There is no expansion of pretreatment capacity currently foreseen to be required (to be verified) for the EZPS. Eventually after the implementation of Wadi Zarqa Phase 2, it is expected the EZPS will be decommissioned and only the pretreatment facilities will remain in service. Currently, the SPC contract is to operate the pump station until December 30, 2025.

- **Component 5 – North Zarqa Pretreatment and Conveyance System (to be implemented under Phase 2):**

The North Zarqa Catchment Area (NZCA) will be connected to a collection system progressively with eventual connection to the Wadi Zarqa WWTP in Phase 2

b. Phase I Overview

The project scope is for the design build and operate of the new Phase 1 only of Wadi Zarqa WWTP and associated facilities described in this document, located in the Zarqa Governorate. Phase 1 (this Project): is designed to treat an annual average flow of 150,000 m³/d.

This project includes the following elements:

- Component 1 - Wadi Zarqa WWTP
- Component 2 – West Zarqa Conveyor Pipeline, by replacing the existing 1200mm old siphon with a new pipeline
- Component 3 - Expansion and conversion of WZPS to a pretreatment facility.

This project is planned to be completed by 2030. About 60% to 80% percent of the existing WZPS will be diverted to the new WWTP by gravity in this phase, and the remaining 30 percent will continue to be pumped to As Samra WWTP until year 2034 to maintain flows at As Samra WWTP close to its design capacity of 364,800 m³/d. Flows to the WZPS site are expected to exceed design capacity by 2028 and therefore the pretreatment capacity at the pump station must be expanded. Pretreatment is necessary to allow for the proper operation of the hydropower station at the proposed and existing plants to benefit from the available head to generate energy.

2. Design-Build and Operation Services Period(s)

The Contract is expected to be awarded in the Mid of 2027 with site mobilization to commence soon afterwards. Time for Completion will be 36 months for the design-build period.

The contract will also include 20-year Operation Service Period (O&M) component, including WWTP, Conveyance pipelines, & Hydropower Plant with a potential to structure the project into a contract with a 10-year base term plus one 10-year extension, exercisable only upon satisfactory performance reviews and mutual agreement (Operation arrangements to be defined and confirmed during the bidding stage). The operation contract will include sludge disposal to As Samra sludge monofil, renewal of assets. The FIDIC Gold Book will be used for the Conditions of Contract.

